

Contentious Chamber

Decision on the merits 113/2024 of September 6, 2024

File number: DOS-2023-03279

Subject: measures concerning cookie banners on Mediahuis information websites (websites De Standaard, Gazet van Antwerpen, Het Belang van Limburg, and Het Nieuwsblad)

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Christophe Boeraeve and Jelle Stassijns, members;

Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Having regard to the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "LCA";

Having regard to the law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data, hereinafter "LTD";

Having regard to the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Having regard to the documents in the file;

Has made the following decision regarding:

The complainant:

X, represented by Noyb – European Center for Digital Rights, hereinafter "the complainant" or "the complaining party";

1 The new Internal Regulations ("ROI"), after the amendments made by the law of December 25, 2023, amending the law of December 3, 2017, establishing the Data Protection Authority (DPA), came into force on June 1, 2024.

In accordance with Article 56 of the law of December 25, 2023, the new ROI applies only to complaints, mediation files, inspections, and procedures before the Contentious Chamber initiated from that date: <https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur-de-l-autorite-de-protection-des-donnees.pdf>.

Cases initiated before June 1, 2024, such as the present case, are subject to the provisions of the LCA as not amended by the law of December 25, 2023, and the ROI as it existed before that date:

<https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur.pdf>.

This decision was annulled by judgment 2024/AR/1690 of the Market Court on March 19, 2025.

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The defendant:

Mediahuis S.A., represented by Mr. Jan CLINCK, Mr. Pierre ANTOINE, and Mr. Gerrit VANDENDRIESSCHE, hereinafter "the defendant".

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I. Facts and Procedure

I.1.

The Four Complaints

1.

This case is based on four joint complaints from a single complainant regarding the defendant's cookie practices on four of its websites:

- The first complaint concerns the website 'Gazet van Antwerpen' (www.gva.be)
- The second complaint concerns the website 'De Standaard' (www.standaard.be)
- The third complaint concerns the website 'Het Nieuwsblad' (www.nieuwsblad.be)
- The fourth complaint concerns the website 'Het Belang van Limburg' (www.hbvl.be)

2.

The complainant is represented by Noyb – European Center for Digital Rights ("Noyb"), headquartered in Austria. For each of the four complaints and for each individual website, a signed and dated mandate from the complainant is attached, which authorizes the representative to represent the complainant before the Belgian Data Protection Authority (APD). The scope of the mandate is formulated as follows: "concerns: the collection of my data through the placement of cookies on the defendant's website," followed by the identification of each of the four aforementioned websites, and then "and to take all necessary measures to enforce my rights, including initiating legal or extrajudicial proceedings." (N.B.: free translation provided by the Translation Service of the Data Protection Authority, in the absence of an official translation)

3.

The complaints always target four alleged "violations" and specify the complainant's grievances as follows:

- "Violation Type 1: Absence of a 'reject' option at the first level of information in the cookie banner"
- "Violation Type 2: Misleading button colors"
- "Violation Type 3: It is not as easy to withdraw consent as it is to give it"
- "Violation Type 4: Reference to legitimate interest"

4.

The complaints – dated July 18, 2023 – are submitted to the First Line Service of the Data Protection Authority by email. The complaints were officially received after midnight on July 19, 2023.

5.

On August 3, 2023, the First Line Service requests the following from the complainant's representative: "Please inform us of the complainant's interest in filing the complaint, as provided for in Article 60 of the law of December 3, 2017 establishing the Data Protection Authority."

6.

On August 24, 2023, the complaint is declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint is forwarded to the Litigation Chamber under Article 62, § 1 of the LCA.

7.

On September 1, 2023, the complainant's party submits a document to the First Line Service responding to the question posed by the First Line Service to Noyb on August 3, 2023 regarding (the legal framework related to) the complainant's interest and the granting of a mandate.

8.

In the aforementioned document, Noyb refers to the communication it sent on August 17 and 25, 2023,

to the First Line Service, to which the First Line Service responded to Noyb on August 24 and 29, 2023, respectively. This communication was not included in the present file by the First Line Service because this exchange took place in the context of another ongoing case before the APD; the Litigation Chamber maintained this approach and confirmed it to the defendant.² Of course, the content of these messages was not taken into account in the evaluation and decision in the present case.

I.2. The Settlement Proposal and the Settlement Procedure in the Pre-Treatment Procedure on the Merits

9.

On September 21, 2023, the Litigation Chamber sends a letter to the parties indicating that it would transmit a settlement proposal to the parties within thirty days. In the meantime, the parties have the opportunity to consult the file, which both parties also requested; they were granted access.

10.

On October 20, 2023, a settlement proposal is simultaneously transmitted to both parties, after which the settlement procedure formally begins in the sense of Article 95, § 1, 2° of the LCA.

11.

On October 30, 2023, the representative provides the Litigation Chamber with the complainant's response to the settlement proposal, suggesting a number of adaptations.

12.

On November 6, 2023, the Litigation Chamber informs the parties that – following comments from the complainant – it would not make any adjustments to the conditions of the settlement proposal.

2 Upon receiving a copy of the file, the defendant addressed the Litigation Chamber several times (on September 28, 2023, and again on November 2, 2023) requesting the aforementioned messages from August 17 and 24, 2023, which the Litigation Chamber refused in order to preserve the integrity of the other case.

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13.

On November 7, 2023, the defendant indicates through their lawyer that the response period provided in the settlement proposal is not feasible. The defendant therefore requests an extension of the response period until December 20, 2023.

On November 10, 2023, the Litigation Chamber indicates that at this time, the extension of the deadline as proposed by the defendant cannot be accepted, but the Litigation Chamber grants a postponement of seven days.

14.

On November 27, 2023, the defendant sends a letter via their lawyer, in which they state that they are not opposed to a settlement but nonetheless seek clarification on several points. The defendant also suggests adaptations to the terms of the settlement proposal.

15.

On November 28, 2023, the Litigation Chamber sends an acknowledgment of receipt to the defendant, after which the Litigation Chamber sends another letter on December 1, 2023, indicating that a response to the defendant's letter of November 27, 2023, will only be sent later.

16.

On December 5, 2023, the Litigation Chamber sends the defendant a response regarding all aspects for which the defendant requested clarifications or adaptations in the letter of November 27, 2023.

17.

On December 11, 2023, the defendant informs through their lawyer that they cannot accept the settlement proposal in its entirety. However, the defendant immediately indicates in the same letter that they have made several modifications in response to the 2nd and 3rd complaints of the complainant, and that regarding the 4th complaint, further modifications would still be made.

Concerning this last complaint, the defendant states that they "will not rely on legitimate interest to place such cookies again."

18.

On December 18, 2023, the Litigation Chamber then makes a formal decision to withdraw the settlement proposal, briefly explaining the reasons for abandoning the settlement procedure.

I.3. The Procedure on the Merits

19.

On February 5, 2024, the concerned parties are informed by registered mail of the provisions referred to in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions. In the letter, the Litigation Chamber invites the parties to take a position on several specific aspects, outlining the potential violations attributed to the defendant.

20.

On February 12, 2024, the defendant sends a letter to the Litigation Chamber, containing various remarks and requests regarding the procedure and asking for the procedural documents to be sent by mail rather than electronically. The Litigation Chamber responds to this letter on February 19, 2024, and also extends the previously set deadlines for the conclusions.

21.

On March 27, 2024, the Litigation Chamber receives the defendant's response conclusions; these conclusions are subsequently forwarded to the complainant's representative.

22.

On April 17, 2024, the Litigation Chamber receives the reply conclusions from the complainant. The complainant's representative responds to several points in the defendant's response conclusions of March 27, 2024.

23.

The (representative of the) complainant also requests to be heard by the Litigation Chamber and to take the necessary corrective measures. Furthermore, the complainant requests that the provisional execution not be suspended, as requested by the defendant, since this option provided by the legislator should be interpreted restrictively. Finally, the complainant requests that the decision be published on the APD's website.

24.

On May 8, 2024, the Litigation Chamber receives the defendant's reply conclusions; these conclusions are subsequently forwarded to the complainant's representative.

25.

On June 17, 2024, the parties are informed that the hearing will take place on July 1, 2024.

26.

On July 1, 2024, the parties are heard by the Litigation Chamber.

27.

On July 8, 2024, the minutes of the hearing are submitted to the parties.

28.

On July 12, 2024, the Litigation Chamber receives some remarks from the complainant regarding the minutes, which it decides to incorporate into its deliberation.

29.

On July 12, 2024, the defendant first submits a number of remarks regarding the minutes, claiming that these minutes do not accurately reflect the hearing. The Litigation Chamber decides to integrate the aforementioned remarks into its deliberation. On July 16, 2024, the defendant provides new remarks regarding the minutes, which the Litigation Chamber decides to include in its deliberation.

30.

At the same time, the defendant requests a copy of the recording of the hearing, basing this request on Article 95, § 2 of the LCA and Article 15.3 of the GDPR. On July 18, 2024, the defendant is informed that they can come to listen to the unedited full recording of the hearing at the APD offices, that the data protection officer of the APD has been involved, and that the deadline for providing remarks on the minutes is extended. On July 31, 2024 – the deadline for remarks on the minutes – the defendant sends a letter to the Litigation Chamber, as well as to the DPO of the APD, regarding their request to obtain a copy of the recording of the hearing.

II. Motivation

II.1. Preliminary Points

31. A first preliminary point concerns the reply conclusions of the complainant. The defendant asserts in its summary conclusions that the conclusions of the complainant should be excluded from the proceedings, on the one hand because they have not been signed (by the legal representative of Noyb) and on the other hand because the conclusions have not been drafted in accordance with Article 744 of the Judicial Code.

32. The Contentious Chamber explains why the defendant's argument on this point is not legally admissible. In essence, the procedure before the Contentious Chamber is governed by the procedural provisions of the LCA. The Market Court has repeatedly stated that the Contentious Chamber is an administrative body and not a (formal) court. In this sense, one cannot simply assert that the provisions of the Judicial Code would apply fully and always as *lex generalis* in the procedure before the Contentious Chamber when the *lex specialis* of the LCA does not provide for such regulation.

33. Furthermore, the Belgian legislator has explicitly defined in the LCA that the parties may submit conclusions. The legislator then left the APD to regulate how conclusions may be submitted – and, if necessary, to define this in the Internal Rules.

34. It is in the letter from the APD dated February 5, 2024, that the parties were informed of the modalities for submitting conclusions. The invitation does not mention anywhere that the parties should submit their conclusions according to the formal modalities referred to by the defendant, nor does it refer to the Judicial Code. The Contentious Chamber cannot limit the conclusions of a party – this must also apply *mutatis mutandis* to the modalities of drafting and submitting its conclusions by a party when nothing is 'imposed' in advance on the parties. The complainant has complied with the deadlines for the conclusions regarding the submission of the document.

3 For example, Judgment of the Brussels Court of Appeal (Chamber 19A, Market Court Section), October 20, 2020, 2020/AR/582, § 7.4; Judgment of the Brussels Court of Appeal (Chamber 19A, Market Court Section), July 7, 2021, 2021/AR/320, p. 24; Judgment of the Brussels Court of Appeal (Chamber 19A, Market Court Section), March 1, 2023, 2022/AR/1085, p. 7.

4 Article 98, 2° of the LCA: [...] the possibility [for the parties] "to submit their conclusions"; And again in Article 99 of the LCA: "The contentious chamber invites the parties to submit their conclusions."

5 See in this regard Articles 48 et seq. of the former Internal Rules (2018 version) which apply to the present case.

6 Cf. the judgment of the Market Court (2021/AR/320) of July 7, 2021, p. 15: "The circumstance that the response form would only allow a reaction containing a limited number of words is not relevant in this regard. The extent of the reaction and thus the exercise of the rights of defense cannot indeed be validly limited by the Contentious Chamber." (N.B.: free translation made by the Translation Service of the Data Protection Authority, in the absence of an official translation)

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35. In light of all these elements, it is clear to the Contentious Chamber that the document in question (the plaintiff's reply conclusions) should not have been excluded from the proceedings, that it could simply be part of the deliberation of the Contentious Chamber, and that the arguments put forward by the defendant to exclude the document from the proceedings are unfounded.

36. A second preliminary point concerns new documents submitted at the hearing by the plaintiff's representative. The defendant opposes the submission of these documents and their addition to the file. Given the late submission of the documents, the opposition of the defending party to the submission, as well as the absence of any valid reason regarding the late submission, the documents are fully excluded from the proceedings and are not included in the discussions before the Contentious Chamber nor in its deliberation.

37. The Contentious Chamber emphasizes regarding this second preliminary point that as an organ of a supervisory authority, it must be able to take into account all elements brought to its attention in order to guarantee a high level of data protection. Nevertheless, the procedure must respect the requirements of contradiction and equality of the parties. The procedure provided in the subsection "Deliberation and Decision on the Merits" of Articles 98 et seq. of the LCA is precisely intended to

ensure a contradictory procedure. In administrative law, particular attention must be paid in this context to the obligation of hearing and the rights of the defense.

38. A third preliminary point concerns the valid legal appearance of the person who appears (physically) at the hearing for the plaintiff's representative. During the hearing, the defendant indicates that he questions the mandate of the person to act for Noyb in accordance with the statutes of this organization.

39. It should first be noted in this regard that Noyb has identified itself as the representative of the plaintiff before the Contentious Chamber, by producing the mandate for this purpose, via a message sent through a specific email address. For the presence at the hearing of the person in question, the representative indicated, prior to the hearing, via the email address that the Noyb collaborator would be present as a representative. The Contentious Chamber is not obliged to examine ex officio or at the request of the parties how the designation of this collaborator actually took place. The notification by the organization Noyb via email of the identity of the collaborator in question is sufficient. This reason is enough to establish that the person could validly appear for Noyb.

40. Furthermore, it should be noted that during this hearing, the plaintiff was present in person, alongside the Noyb collaborator. Based on the appearance of the

7 Opdebeek I. and De Somer S., General Administrative Law: Foundations and Principles, Ed. 2, Antwerp, 2019 Intersentia, specifically Part V, Chapter III, Section 7 concerning the obligation of hearing.

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Claimant, it can be observed that the claimant also assumes that the person in question could validly appear for their representative Noyb.

41.

The person in question indeed appeared validly for Noyb at the hearing.

42.

Fourth Preliminary Point: during the hearing, in its plea, the claimant questions, for the first time and without prior notification, but not in limine litis, the "independence" of the president of the Contentious Chamber in handling this case. The claimant further requests that the president of the Contentious Chamber recuse themselves. The claimant refers in this regard to "sources" who allegedly overheard in private conversations that there was a strategy to dismiss the complaints "of Noyb," and at a public event attended by the president of the Contentious Chamber. No other concrete evidence supporting the lack of "independence" of the sitting member is presented.

43. According to the terms of the claimant, the Contentious Chamber understands that this is rather (or at least also) about the impartiality than the independence of the Contentious Chamber.⁸ The requesting parties must exercise caution and precision when making such 'recusal requests.'⁹ Expressing dissatisfaction regarding (the outcome or the course) of a procedure is something else than making recusal requests concerning members of public institutions, whose legitimacy precisely relies on their independence and impartiality.¹⁰

44. Regarding specifically the verbal request of the claimant for the recusal of the president, the president decides not to grant it for the following reasons.

45. First of all, the claimant had sufficient knowledge that the president was handling (participating in the handling of) this case, at least no later than February 5, 2024, when the parties were invited to submit their conclusions in this case, in a letter signed by this president. The claimant had the opportunity to take the necessary steps to address the issue. The (extremely) late nature of the recusal request is in itself sufficient to deny this request.

46. Furthermore, the following facts can be referred to.

⁸ L. Van Den Eynde, "Partiality and Conflicts of Interest in Active Governance: the Sneaky Path of the Principle of Equality," TBP, 2024, Ed. 4, 215-230, specifically section 2.1 "types of (im)partiality and evidence"; Cf. the confusion of notions within the judiciary: Ooms A., "Judicial Impartiality is Not Always What It Seems. A Historical and Prospective Analysis of the Boundary Between Objective and Subjective Impartiality," Public Law Chronicles, 14(2010)4, pp. 499-524; Opdebeek I. and De Somer S., General Administrative Law: Foundations and Principles, Ed. 2, Antwerp, 2019 Intersentia,

specifically Part V, Chapter III, Section 8 regarding the principle of impartiality for the administration.
9 Cf. Article 835 of the Judicial Code for recusal requests regarding members of the judiciary, a provision which states that such recusal requests must be filed with the registry along with the grounds for recusal in a formal document, and only by lawyers with more than ten years of experience at the bar.

10 In this regard, the legislator anchors some elements in Article 44 of the LCA.

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47.

In this case, it is the defendant, and not the Disciplinary Chamber, who raised a number of grounds and arguments that highlighted the (procedural) interest and the mandate of the representative by the complainant. Furthermore, in the present case, only the First-Line Service inquired, without commitment, about the (procedural) interest of the complainant, evidently without adverse consequences for the latter regarding the admissibility of the complaint. In its letter inviting the submission of conclusions, the Disciplinary Chamber did not ask the complainant to further explain their (procedural) interest or the circumstances of the mandate. Therefore, it is not correct to suggest a bias on the part of an individual or a strategy of the Disciplinary Chamber or its president.

Nevertheless, the Disciplinary Chamber has the authority to pose such questions to the parties.

48. The complainant then had the opportunity to respond to the aforementioned grounds and arguments of the defendant in the reply conclusions as well as during the hearing. However, the complainant indicates at the outset of the hearing that it is the substantive elements that should constitute the focus of the debate rather than the formal elements, and that the complainant would be subjected to a "more in-depth examination" than a data controller. This is factually incorrect, moreover on several points.

49. First of all, the transaction procedure itself illustrates the fact that the Disciplinary Chamber – prior to this decision – initiated a procedure precisely to quickly address the substantive grievances raised in the complaint. Furthermore, it was at that time the first time that the Disciplinary Chamber applied its authority to opt for the transaction procedure in the pre-deliberation phase regarding the merits.

50. The Disciplinary Chamber does not understand to what extent the complainant would be subjected to a "more in-depth examination." The Disciplinary Chamber did not ask or suggest anything in this regard to the complainant before the defendant raised their arguments, and the Inspection Service did not intervene in this case. The fact that the defendant raises arguments and grounds in this regard falls within the rights of a defending party in proceedings that may involve potentially significant corrective measures. Such arguments and grounds cannot be excluded from the debate.

51.

Moreover, regarding the defendant's question about whether they should limit themselves during the hearing to their arguments concerning these procedural elements, the Disciplinary Chamber indicated that the parties were free to conduct their pleadings as they wished, but that, in accordance with the letter of February 5, 2024, the hearing "will at least address the substantive elements."

11 The defendant posed a question on this subject to the Disciplinary Chamber on June 19, 2024, with the complainant copied (cc).

12 The Disciplinary Chamber responded to the defendant on this matter on June 21, 2024, with the complainant copied (cc).

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It cannot be made any clearer the extent to which the substantive aspects constituted (among other things) the center of the debate before the Contentious Chamber.

52.

The Contentious Chamber specifies that the representative of the complainant must distinguish in this case between different formal procedures in which he intervenes for different complainants. In this file, whether during the preparation of the file or the invitation to submit conclusions, the Contentious Chamber has never itself raised the alleged issue concerning the (procedural) interest of the complainant, nor the alleged issue concerning the mandate. In the following elements of this decision, the Contentious Chamber further rejects the arguments of the defendant in this regard.

53. It cannot be asked of the Contentious Chamber not to consider the arguments of the defendant or not to submit the arguments in this matter to an evaluation. Moreover, it is precisely the role of the Contentious Chamber to examine the means and arguments put forward, which must be evaluated on a case-by-case basis.

54. The Contentious Chamber also rules impartially, without fear or favor for either party. In this sense, the defending parties are also entitled to a fair analysis of the facts and according to legal standards. At the procedural level, a complainant party is not entitled to preferential treatment, nor would it have the privilege of excluding a legal debate – potentially to its detriment. When certain aspects are addressed or treated in an investigation, during the hearing, or in a decision, this does not indeed mean that the aspects are justified or founded.

55. In a credible dispute, the truth is reached by thoughtfully relying on quality facts and arguments. In this context, legal questions must of course be able to be raised without this implying bias in itself.

56. The fact that within the framework of cooperation organized in a fair and confidential manner within and between supervisory authorities in the European Economic Area, information that may raise crucial legal questions on a certain issue

13 In this context, it should also be noted that at the procedural level, documents from the complainant could not be included in this file, as they were transmitted in the margins of another file for which the representative was intervening. See in this regard the exchanges between the defendant and the Contentious Chamber in documents 20, 21, 28, and 32 of the administrative file.

14 See the ruling of the Brussels Court of Appeal (Market Court Section) of September 16, 2020, 2020/AR/1160, § 5.7: "In a state governed by the rule of law, it is not possible for the Contentious Chamber of the DPA to 'choose' the argument to which it responds or not." (N.B.: free translation made by the Translation Service of the Data Protection Authority, in the absence of an official translation)

15 See Article 6 of the European Convention on Human Rights and Fundamental Freedoms, Article 47 of the Charter of Fundamental Rights of the European Union, and Article 52 of the GDPR. Although the Contentious Chamber is not a court in the traditional sense, this principle also applies to administrative procedures (ECHR, *Öztürk v. Germany*, February 21, 1984, ECLI:CE:ECHR:1984:0221JUD000854479); in Belgian law, the impartiality of administrative bodies is also guaranteed as a principle of good administration, see above and the ruling of the Council of State, June 22, 2017, No. 238.610.

16 Although the Contentious Chamber is not a jurisdiction, reference can be made to Article 6 of the Judicial Code, which states that judges must apply the applicable legal rules in all cases submitted to them; under Article 57 of the GDPR, it is up to the supervisory authority to handle complaints and examine their outcome, without indication of any preferential treatment.

17 See Art. 54.2 of the GDPR and Art. 48, § 1 of the LCA.

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may be provided is inherent to the cooperation procedure referred to in Chapter VII of the GDPR.¹⁸
57.

The mere fact that a previous case¹⁹ before the Contentious Chamber with presumed similar circumstances may lead to an unfavorable outcome for the same party or its representative does not, of course, justify the recusal of a member sitting in another case (in this instance, the present case).

58. When a party disagrees with a decision of an authority, it is entitled, pursuant to Article 78 of the GDPR, to lodge an appeal against that decision. In Belgian law, this appeal may also be lodged by any interested third party with the Market Court, in accordance with Article 108, § 3 of the LCA. If Noyb therefore considers itself to be such an interested party²⁰, it has, if applicable, a right of access. The fact that in a previous case, an appeal could not be lodged because the concerned complainant did not wish to do so, as mentioned during the hearing, does not constitute an argument that can be reproached to the Contentious Chamber and is irrelevant.

59. Finally, as a fifth and final preliminary point, the defendant informed the Contentious Chamber on July 12, 2024, after receiving the minutes in this file, that it believed that these minutes did not "accurately" reflect the hearing and that this could (might) infringe upon the rights of the defense. In this context, the defendant requested that a new set of minutes be drafted.

60. On July 23, 2024, the Contentious Chamber informed the defendant that the unedited audio recording could be heard in full within the premises of the APD, after the Contentious Chamber had already extended the deadline for submitting comments on the minutes until July 31, 2024, inclusive. It should be emphasized in this context that the Contentious Chamber included the following passage in the invitation to the hearing:

Please also note that the entirety of the hearing will be recorded solely for the purpose of drafting minutes. The recording will be destroyed as soon as the appeal period as mentioned in Article 108 of the LCA has expired. In the event of the use of the possibility of appeal, the recording will only be destroyed upon receipt of the judgment from the Market Court.

61.

The Contentious Chamber refuses the requested copy for the following reasons.

18 In this regard, the principle of impartiality cannot be applied *contra legem* concerning the circumstances of international information sharing, cf. the judgment of the Council of State of June 23, 2020, Lossau, no. 224.038; commentary in L. Van Den Eynde, "Partiality and Conflicts of Interest in Active Governance: The Sneaky Path of the Principle of Equality," TBP, 2024, Ed. 4, (215)219, § 11.

19 In this sense, in the conclusions and pleadings of various parties, reference is made in the procedure to Decision No. 22/2024 of the Contentious Chamber, against which no appeal has been lodged with the Market Court.

20 In the comments regarding the minutes, the complainant raises the following remark: "[...] the non-lodging of an appeal is indeed anything but in the interest of Noyb."

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62.

First of all, the drafting of the minutes by the Contentious Chamber and its sending to the parties is not a legal right, but merely an initiative of the APD to integrate the hearing into the administrative (formal) file and to formalize in the file the elements that were not raised in the respective conclusions.

The Internal Rules state that a minute is drafted simply as a summary; the minute then explicitly indicates the following:

"This minute aims solely to mention clarifications and additions made during the hearing, without reiterating the elements that were presented in the written conclusions of the parties." (the Contentious Chamber emphasizes in light of this decision)

63. In this sense, the Contentious Chamber has taken note of everything that was said during the hearing. The defendant presented his arguments in depth (counting the table of contents and the list of documents, the summary conclusions total 117 pages) and in detail in his conclusions. The Contentious Chamber did not include in the minutes similar elements that were mentioned during the pleadings, and it merely recalled that the pleadings respectively concern "formal" and "substantive" elements – elements that are found in the summary conclusions and whose terms are literally similar. Each question or new substantive remark made during the hearing has indeed been included in the minutes.

64. Secondly, the Contentious Chamber asserts that the purpose of the minutes is not to provide a comprehensive account of everything that was said during the hearing. A comprehensive account is not only irrelevant to the objective of the right to be heard in accordance with the law, but it is also undesirable for the proper functioning of the procedure for the Contentious Chamber and for its smooth conduct for the parties. The debates are indeed not reopened after the closure of the hearing, as expressly indicated in the minutes themselves. Under the principle of effectiveness, the GDPR must be applied usefully: unnecessary additions to the procedure are not only undesirable but are also illegal in accordance with this principle.

65. An exhaustive transcription of everything said during a 1.5-hour hearing, as in this case, would represent several dozen pages of minutes, thus reducing the procedural added value of a hearing to nothing.

66. Finally, in the context of the request, the defendant emphasizes that under Article 95, § 2 of the LCA, he would be entitled to a copy of the recording because it is part of the file. This is incorrect. The minutes are the document that is included in the file; moreover, the remarks of the parties on this

minute are included in the minutes.

21 Art. 54 of the "old" version of the APD's Internal Rules.

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The audio recording only facilitates the drafting of the minutes in question and does not constitute a document in the administrative file. The right to be heard, as set out in Article 98, 2° of the LCA, does not extend to obtaining a copy of the recording of the hearing. At the end of the hearing, the debates are indeed closed, and therefore access to a copy of the audio recording under Article 95, § 2 of the LCA – a legal provision that deals with the copy of the file during the preparation of the case – is in any case not possible.

67.

For all these reasons, the defendant's request for the drafting of a new, more comprehensive minute of the hearing of July 1, 2024, is rejected.

68. For the transparency of the procedure, it should be noted that various lawyers for the defendant requested a copy of the audio recording of the hearing under Article 15.3 of the GDPR, through messages sent to the Contentious Chamber on July 18 and July 31, 2024. In the message of July 31, 2024, various lawyers for the defendant addressed both the Contentious Chamber and the Data Protection Officer ("DPO") in person. As soon as a lawyer referred to Article 15.3 of the GDPR on July 18, 2024, the DPO of the APD was informed of the request. This exercise of a right under Article 15.3 of the GDPR does not fall under the administrative procedure prior to this decision.

II.2. The complaint lodged under Article 80.1 of the GDPR

II.2.1. Legal framework

69. Article 80 of the GDPR states the following:

Representation of data subjects

1. The data subject has the right to mandate an organization, association, or non-profit entity, which has been validly established in accordance with the law of a Member State, whose statutory objectives are of public interest and is active in the field of protecting the rights and freedoms of data subjects in the context of the protection of their personal data, to lodge a complaint on their behalf, exercise on their behalf the rights referred to in Articles 77, 78, and 79, and exercise on their behalf the right to obtain compensation referred to in Article 82 when the law of a Member State provides for it.

2. Member States may provide that any organization, association, or entity referred to in paragraph 1 of this article, regardless of any mandate given by a data subject, has, in the Member State in question, the right to lodge a complaint with the supervisory authority that is competent under Article 77, and to exercise the rights referred to in Articles 78 and 79 if it considers that the rights of a data subject provided for in this regulation have been violated due to processing.

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In light of the above, Recital 142 of the GDPR is also relevant:

When a data subject believes that the rights conferred on them by this regulation have been violated, they should have the right to mandate an organization, a non-profit organization, or an association established in accordance with the law of a Member State, whose statutory objectives are of public interest and which is active in the field of personal data protection, to lodge a complaint on their behalf with a supervisory authority, exercise the right to an effective judicial remedy on behalf of the data subject, or, if provided for by the law of a Member State, exercise the right to seek compensation on behalf of data subjects. A Member State may provide that this organization, this association, or this non-profit organization has the right to lodge a complaint in that Member State, regardless of any mandate given by a data subject, and has the right to an effective judicial remedy if it has reasons to believe that the rights of a data subject have been violated because the processing of personal data has taken place in violation of this regulation. This organization, this association, or this non-profit organization cannot be authorized to seek compensation on behalf of a data subject independently of the mandate given by the data subject.

II.2.2. Context of the Complaint

70. The way in which the complainant can be visualized, in consultation with Noyb as the

representative, is as follows.

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71. First, it is indisputably established that Noyb manages projects concerning the filing of complaints related to cookies and cookie banners. Noyb has communicated about projects in this regard that group a considerable number of similar complaints, and the status of the projects is publicly available on Noyb's website.²²

72. Second, there was undoubtedly an internship relationship between the complainant and their representative in this case at the time of the findings that led to the attachments to the complaint. The complainant was also an intern at the time when Noyb was mandated by the individual to file the complaint.

73. Third, there is no demonstrable link between the filing of the complaint in this case by the complainant (including the granting of a mandate to Noyb by the complainant) and the other cookie-related projects initiated by Noyb as an organization. However, Noyb issued a press release on the day the complaints were filed, stating that "fifteen" complaints had been lodged against Belgian media websites. The complainant did not file each of the fifteen complaints.

74. This certainly indicates a certain form of coordination, but nothing suggests that there was any coordination prior to the formulation of grievances by the complainant, nor before the granting of the mandate to Noyb by the complainant. In this sense, it cannot certainly be established that there may have been any pressure from Noyb towards the complainant.

75. It should be noted, however, that this fact is not uncontested, with the defendant indicating that the complainant's interest as a data subject has not been demonstrated and that the findings or grievances cannot be entirely dissociated from the organization Noyb. During the hearing, the defendant specifically referred to the fact that the finding was made with work materials during working hours and that it concerns a project within Noyb (and not a complaint from the complainant as an individual).

76. Fourth, the complainant believes that a violation of the GDPR has occurred and that their rights have been violated.

77. Fifth, a complaint has been filed on behalf of the complainant by Noyb as their representative. The complaint was formulated in consultation with the complainant and submitted to the Belgian supervisory authority, and it was filed without any presumed formal defect with the APD's First Line Service.

22 Reference is made in particular to documents 4, 5, and 6 in the defendant's summary conclusions, including the reference to the webpage titled "Noyb wil een einde maken aan 'cookiebannerterreur' en dient meer dan 500 GDPR klachten in" ("Noyb wants to put an end to 'cookie banner terror' and files more than 500 GDPR complaints" – aforementioned document 4).

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II.2.3. Absence of direct evidence of 'fictitious' mandate and presence of an interest (to take legal action) on the part of the complainant

Position of the complainant

78. In its reply conclusions, the complainant examines the "admissibility" of the complaint. The Contentious Chamber summarizes the viewpoint below.

In the first part, the complainant provides an argument regarding "admissibility under Article 77(1) in conjunction with Article 80(1) of the GDPR."

a. First, the complainant asserts in the section "burden of proof" that it is evident from the complaints and the annexes that there is a personal link between the complainant and the data processing, notably because the complainant visited the websites, revealing useful indications for the violations described in the complaint. In this regard, the complainant further asserts that the GDPR does not impose any conditions regarding the content, form, or scope of the complaint, nor on the evidence that should be provided by the complainant. The complainant then states that it is the data controller who bears the burden of proving compliance with the GDPR, and not the complainant.

b. Secondly, the complainant asserts in the section "the processing in question violates the GDPR" that the complaints describe where the violations of the GDPR are located and that the GDPR or the

LCA does not require the affected complainant to first exercise their rights against the data controller. The complainant further emphasizes that the defendant did not accept the cookie banners following the settlement proposal and that there are still illicit cookie banners in question.

c. Thirdly, the complainant asserts in the section "sufficient personal interest" that the complainant visited the websites and that personal data was processed in this regard. The complainant then chose to be represented by Noyb, in accordance with Article 80(1) of the GDPR. The representation mandate can always be interrupted, and Article 80(1) of the GDPR does not impose any limitation on granting such a representation mandate during or after a "direct subordinate relationship" between the complainant and the representative, according to the complainant. Furthermore, the complainant states that the Court of Justice of the EU has accepted that a person employed (or having been employed) by Noyb can be represented by it and that the argument of invalid representation by Noyb has been repeatedly rejected in pending cases concerning Noyb. Additionally, Noyb emphasizes that the decisions of the Contentious Chamber do not have a precedent effect.

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d. Fourthly, the complainant asserts in the section "Constitution in accordance with Belgian law (art. [...] 220, § 2,1° LTD)" that the APD has previously recognized that this Belgian provision is more restrictive than Article 80(1) of the GDPR and that it does not apply it in the sense that non-compliance with it has 'no impact.' The complainant further asserts that the APD should not apply the national provision in order to ensure the full effect of EU law and thus authorize Noyb as a representative under Article 80(1) of the GDPR; Noyb has been validly established under the law of a Member State, namely Austria.

79. In a second part on this subject, the complainant argues regarding "admissibility under Article 80(2) of the GDPR":

a. On this point, the complainant asserts that there is valid representation under Article 80(1) of the GDPR, so the question of admissibility under Article 80(2) of the GDPR does not arise. Furthermore, the complainant notes that in accordance with Article 17 of the Judicial Code, Noyb can bring an action before the courts itself and that there is no reasonable justification for not allowing Noyb to file a complaint with the APD itself. Moreover, the complainant asserts that the legal history of Article 17 of the Judicial Code does not indicate that the provision does not apply to proceedings before (the Contentious Chamber of) the APD. On the other hand, according to the complainant, it follows from the legislative history of Article 58 of the LCA that "any person" can file complaints, including legal entities and associations. The complainant further asserts that allowing Noyb to appear before a court as an independent party to the proceedings, but not before the APD, would constitute a violation of the principle of equality under Article 10 of the Belgian Constitution. The complainant concludes: "The fact that Noyb would have a sufficient interest in filing complaints such as this already follows from Noyb's statutes."

Position of the defendant

80. The position of the defendant is clarified in this regard in two of its arguments and is stated as follows (the Contentious Chamber summarizes):

"2nd argument (as a primary point): Absence of a sufficient personal interest on the part of the complainant":

a. In this argument, the defendant primarily asserts, in summary, that "no credible evidence or allegation of processing of the complainant's personal data is presented in the complaint." According to the defendant, it is uncertain whether the complainant himself visited the websites in question. The defendant states that based on a "more in-depth investigation," it finds...

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for example, that a number of "false or at least incomplete allegations"

can be read in the complaint - and refers, for each of the four complaints, to the fact that references to current news pages (web pages) have been included in the evidence that are subsequent to the date on which the complainant claimed to have visited the websites.

Furthermore, the defendant highlights other inconsistencies in the submitted documents.

b. Secondly, this argument summarizes that the "processing in question" does not violate the GDPR. The defendant thus claims that the complainant, as the data subject, has indeed given his consent and that he has consulted the various layers of information, according to the evidence. Furthermore, according to the defendant, the complainant has not exercised his rights against the defendant. This means, according to the defendant, that the Contentious Chamber cannot order the deletion of data within the meaning of Article 17 of the GDPR or cannot order that this deletion or a rectification be communicated to third parties within the meaning of Article 19 of the GDPR.

c. Thirdly, the defendant asserts, in summary, that the "data subject" (complainant) does not have a sufficient personal interest and that the representative acts under a fictitious mandate. The defendant refers in this regard to press releases from Noyb concerning its actions against the "cookie banner terror" as well as to a specific press release regarding the transactions of the Contentious Chamber. The defendant cites the following passage from the latter press release from Noyb: "Noyb files 15 complaints against said media sites to compel them to adapt their cookie banners." Furthermore, the defendant claims that at the time of visiting the disputed websites, the complainant was an intern at Noyb, that the visits to the websites were not spontaneous visits (given the time spent – less than a minute per website), that the geographical data regarding the website visits referred to Austria, that the complainant himself indicates that he is acting against a general practice, and that the complainant filed a complaint on the same day against other media companies. Moreover, the defendant emphasizes that the letter from Noyb to the Frontline Service on September 1, 2023, does not demonstrate that the complainant indeed has the required personal interest and asserts that the Contentious Chamber had already determined in a previous decision in a similar case (Decision No. 22/2024 of January 24, 2024) that Noyb's mandate was fictitious.

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d. Fourthly, the defendant claims that Noyb has committed an abuse of rights because it has used the complaint procedure to "carry out its own publicly announced program via a fictitious mandate of a subordinate intern." The defendant further specifies: "In this way, Noyb attempted to circumvent the non-transposition into Belgian law of Article 80.2." The defendant further presents several elements to conclude: "Noyb has therefore used the complaint procedure of the DPA for a purpose other than that for which the procedure is actually intended. This is an abuse of rights."

e. Finally, the defendant responds to a number of points from the complainant's conclusions. In this context, the defendant notes that the complainant does not respond to "several arguments – rather factual" from the defendant and that these facts are therefore not contested.

"3rd argument (in the alternative): NOYB cannot file a complaint independently"

a. In this argument, the defendant first states and 'as a primary point' that the complainant's mandate is limited to Article 80.1 of the GDPR. The defendant asserts that the Contentious Chamber cannot assess the elements of the complaint under Article 80.2 of the GDPR: in this case, the Contentious Chamber would be ruling "ultra petita."

b. Secondly and 'in the alternative', the defendant claims that Article 80.2 of the GDPR does not apply in Belgium. The defendant refers to the choice of the Belgian legislator not to activate this provision through national law.

c. Thirdly and also 'in the alternative', the defendant asserts that Noyb cannot file a complaint itself as it does not have a sufficient personal interest.

d. Fourthly, the defendant responds to the argument put forward by the complainant in its conclusions, namely that a sufficient interest for Noyb arises from its statutes. The defendant asserts that the statutes of Noyb simply reflect the general and public nature of the interest.

Evaluation by the Contentious Chamber

81.

In general, the representative of the complainant works (pro)actively to denounce certain practices in the field of data protection law. These general objectives of the association are of course not sufficient in themselves to speak of a fictitious mandate under Article 80.1 of the GDPR. The defendant presents several (sub-)arguments in its defense to argue that various issues are to be deplored regarding the mandate. However, the Contentious Chamber finds none of these

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means of direct indications or evidence allowing to assert that the mandate would be fundamentally deficient, or would have been established in a 'fictitious' manner in this case. The Contentious Chamber argues as follows.

82.

First, it is a fact that Noyb has conducted several projects in the past in which it has attempted to raise certain practices through complaints. The fact that, in this context, the mandates would have been formulated in a generally fictitious manner is obviously not sufficient to support that Noyb cannot represent concerned individuals regarding the same matter. There is also no formal indication in this case that Noyb itself took the initiative to encourage the complainants to file complaints with specific concrete content.

83. Secondly, the complainant emphasizes during the hearing that he independently visited the websites and experienced issues with the processing manager's practice, specifically after becoming aware of the Contentious Chamber's settlement decision regarding the websites. The complainant is also Dutch-speaking; it is therefore not inconceivable that the complainant occasionally or regularly visits the disputed websites and has an interest in ensuring that personal data processing is adequate when carried out. When the complainant thus asserts that he independently visited the website—even on a work laptop—and felt aggrieved in doing so, without any indication of prior instruction or pressure from the representative, the legitimate, direct, and personal interest is established. There is no indication of abuse of rights.

84. It should be emphasized here, as rightly pointed out by the complainant, that within the framework of the right to file a complaint, the concerned individual only needs to "believe" that their rights have been violated. A fortiori, recital 143—relating to the mandate granted by a concerned individual—explicitly states that the concerned individual has the right to mandate an organization as long as they "believe" that their rights have been violated. The fact that the representative subsequently makes their expertise available within the framework of the representation mission, in order to gather additional evidence, can simply be considered as good practice.

85. In short, the mandate was granted legitimately under Article 80.1 of the GDPR.

86. Thirdly, caution is indeed warranted when initiating a mandate under Article 80.1 of the GDPR and there is a professional relationship (an employment relationship, an internship relationship, or otherwise). Issues may arise (such as conflicts of interest) within the context of an internship; the Contentious Chamber does not read or find anywhere an argument indicating that the internship relationship is problematic in relation to the mandate for filing the complaint. It is indeed not legally and sensu stricto excluded that the representative may also be the internship supervisor.

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87. It is the representative's responsibility, within the framework of applicable legal standards, to assess whether the representation relationship is appropriate. The Disciplinary Chamber will only intervene if there are clear indications that the legal requirements for valid representation are not being met or if the integrity of the procedure is compromised. This is the case, for example, when a mandate is established fictitiously or when the grievances are clearly 'directed' by the representative.

88. In this regard, it is important to note the following. There is a difference between, on the one hand,

being solicited – even without commitment – by an employer or 'internship supervisor' to give consent for something and, on the other hand, approaching the internship supervisor or employer oneself to grant a representation mandate. In this case, nothing in the facts indicates that the first scenario applies, so no legal breach in the mandate can be established. Furthermore, the complainant stated repeatedly during the hearing that he himself (although in consultation with another person who was also an intern at the same time), and thus not under instruction, identified a problem with the websites in question. There is no evidence to suggest that this statement by the complainant himself is not truthful: the complainant raised this issue in person during the hearing.

89. Offering interns a forum to draft complaints regarding alleged unlawful treatment of their own personal data or other related violations is not problematic in itself, provided that it is done in compliance with legal provisions and without prior instructions regarding, for example, the identity of the data controller and the specific violations sought. This provision of a forum may, in principle, also include the provision of work materials and a physical workplace for individuals. Strategic coordination between the complainant and his representative regarding how a complaint is filed, the violations targeted, and how the content is presented can, of course, only take place after such grievances have been formulated.

90. In this regard, it is, of course, not excluded that the complainant's objective, which is to be represented in asserting rights that are alleged to have been violated and which he wishes to see respected, coincides with the organization's own objectives, Noyb, which aims to enforce, in the public interest, the rules regarding lawful processing of personal data in the context of cookies.

23 Reference should be made, in particular, to Article 57.4 of the GDPR, which states that excessive requests from individual data subjects may be subject to refusal of processing.

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91.

In summary, there is also nothing to indicate that the mandate would be fictitious. The complainant has a direct and personal interest and granted the mandate independently, and not at the instruction of the representative.

92.

Fourthly, the defendant rightly notes that a number of ambiguities, errors, or omissions arise from the evidence (in relation to the content of the complaint itself). However, these aspects seem to indicate a negligent presentation of the evidence by the complainant or, as the case may be, by the representative, particularly regarding the dating of these pieces of evidence, rather than fundamental issues concerning the mandate of the representative. Furthermore, the complainant claims to have visited the web pages himself, which is disputed by the defendant. In any case, the inaccuracies or errors are not of a nature to warrant a dismissal in this instance.

93. During the hearing, the complainant acknowledged that not all the documents in the complaint and the administrative file were identified or described accurately. However, the complainant states that he was the one who took the initial screenshots and thus raised the initial grievances that led to the complaint. Regarding the HAR files attached to the complaint (which indicate/record network traffic at a given time, so that the placement and reading of different cookies on the disputed websites are visible), it is again raised that they were not generated by the complainant (but rather by collaborators of the representative). In this regard, the complainant indicates that the HAR files do not serve to demonstrate the processing of personal data of the complainant as the data subject, but rather to contextualize the general practices of the defendant.

94. None of this directly proves the existence of a problem related to the mandate (or its fictitious nature). The complainant is transparent about the method, and everything indicates that additional evidence was collected after the occurrence of the grievances on the part of the complainant. Moreover, the defendant does not dispute that the screenshots and the practices evidenced by these screenshots were indeed real screenshots taken from the disputed websites.

95. The same applies to the HAR files from the disputed websites that were attached. For these files, the defendant believes that the dating or the person responsible for the document is unclear, but the Contentious Chamber considers in this context that nothing indicates that the documents have been

manipulated in any way. Furthermore, the HAR files play no role in the continuation of the assessment by the Contentious Chamber, notably because these files are not relevant to the violations identified below.

96. Regarding the screenshots, it is established that it was the complainant who became aware of the cookie banners and their various layers; at least part of the screenshots attached to the complaint were initially generated by the complainant.

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97.

It can be considered good practice that when Noyb represents a data subject, it ensures, as a representative, to gather the necessary evidence; it is not necessary for the complainant to take the initiative to do so when they mandate Noyb to present a predetermined case (with grievances that may be attributed to the complainant's own initiative), as long as the evidence further supports the complaint. In this sense, it is certainly not true that the Contentious Chamber does not consider the evidence provided by the representative as admissible.

98. In summary, incorrectly marked, qualified, or otherwise defective evidence does not indicate an issue regarding the complainant's interest or the mission of representation and does not lead to the necessity of dismissing the case. The decision relies solely on the evidence whose veracity is established or on the evidence or elements put forward by the defendant themselves.

99. Fifthly, it is not at all accurate that a complaint must in any case be dismissed because a complainant (in this case as a data subject) does not first address the data controller, or that the Contentious Chamber cannot take action when a data subject has not first approached the data controller. Depending on the circumstances, it may even not be necessary for a person's personal data to be processed for a complaint to be handled by a supervisory authority - despite some previous legal discussions on this matter.²⁴ It is a fact, however, that the Contentious Chamber and the DPA as a whole – given their limited resources – strive to handle complaints as efficiently as possible, with the non-exercise of rights certainly being a factor in the assessment of the dismissal of a complaint. In this case, such an assessment by the Contentious Chamber is not relevant.

100. In conclusion: for all these reasons, all of the defendant's arguments related to the aspects concerning the mission of representation and the granting of a mandate to the representative by the complainant in this case are not relevant. The Contentious Chamber finds that the representation is lawful under Article 80.1 of the GDPR and that the complainant has a personal, direct, and established interest regarding the processing of personal data based on the present complaint procedure. The parties' arguments regarding the role of Article 80.2 of the GDPR in this case are not analyzed further, given that this provision plays no role in this matter.

24 Cassation, V v. DPA, C.20.03223.N, ECLI:BE:CASS:2021:ARR.20211007.1N.4, § 6: "By considering on the basis of these grounds that a violation of Article 5, paragraph 1, c), of the regulation is not established and by annulling the contested decision of the applicant, while it is not required that the personal data of the complainant have been actually processed for the applicant to impose corrective measures or an administrative fine in the context of a complaint, after having established the existence of a practice leading to a violation of the principle of minimal data processing, the appellate judges did not legally justify their decision." (emphasis by the Contentious Chamber)

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II.3. Violations

II.3.1. A 'reject all' option on the first layer of cookie banners

Position of the complainant

101. The complainant's position regarding this point is stated as follows:

"None of the cookie banners [...] on the websites of the [defendant] in question contain a 'Reject all' button at the first level, but only an 'Accept and close' button and a 'More information' button. The option to reject all cookies simply and in one step is thus deliberately hidden by the [defendant] in question.

Given that no 'Reject all' option is included in the first level of the cookie banner and that, as a result, it is much easier to accept all cookies than to refuse them, there is a 'default effect' and an incentive to

accept all cookies (cf. recital 32 of the GDPR).

On this basis, the consent obtained by the defendant for the placement of cookies cannot be qualified as 'unambiguous' (art. 4(11) of the GDPR), so that the consent obtained from the complainant is not valid (art. 6(1)(a) of the GDPR in conjunction with art. 5(3) of the ePrivacy Directive in conjunction with art. 10/2 of the LTD [...]). Therefore, the [defendant] in question cannot [...] demonstrate that the complainant has given consent regarding the processing of his personal data (art. 7(1) in conjunction with art. 5(2) of the GDPR).

In this regard, the complainant further emphasizes that the report of the EDPB Cookie Banner Taskforce also adheres to the idea that the absence of a 'Reject all' button at the same level as the 'Accept all' button is considered a violation by a large majority of data protection authorities. [...] As already indicated in the complaint, the fact that this concerns the applicable legal design also arises from the guidelines of the national regulators of France, Germany, Denmark, and Finland. It can also be added (among others) the guidelines of the Dutch authorities [...], Austrian [...]. The DPA also explicitly prescribes that: "A 'manage settings' button next to an 'Accept all' button is therefore not sufficient. [...]"

Furthermore, in accordance with the EDPB guidelines on deceptive design and dark patterns, the fact of offering only an option to refuse all cookies, which evidently requires more steps, time, and effort than accepting all cookies, also implies a violation of the principle of fairness in Article 5(1)(a) of the GDPR:

[citation of said guidelines in English]

The finding that the absence of a 'Reject all' option on the first layer of information of the defendant's cookie banners constitutes a violation does not so much concern the application of guidelines from regulators, but rather a direct and concrete application of the legislation (in accordance with the applicable legal design).

However, it is precisely not possible to attribute to a sporadically approved action plan or to individual (old) decisions of the Contentious Chamber in a few specific cases, which moreover did not concern a 'Reject all' button, the value that they should have as applicable legal design. [...] As already cited in this conclusion, it has been confirmed by the Market Court that the decisions of the Contentious Chamber of the DPA do not have a precedent effect."

Position of the defendant

102. The position of the defendant in its summary conclusions is stated as follows (the Contentious Chamber summarizes):

"4th plea (in the alternative): The absence of a 'reject' option in the first layer of information of the cookie banner does not result in invalid consent"

•

Firstly, the defendant indicates that the alleged violation is "irrelevant because the complainant has given his consent." In this context, the defendant asserts that as soon as a data controller has the consent of the data subject, there is a legal basis for processing the data lawfully; the defendant emphasizes that the complainant has given his consent.

•

Secondly, the defendant states that the obligation to place the 'reject' option in the first layer of information does not appear in any legislation. In this regard, the defendant claims that valid consent can be obtained, "even when no 'reject' option exists at the first level of information of the cookie banner."

•

Thirdly, the defendant indicates that the consent requirements under Article 7 of the GDPR are indeed respected. The defendant points out in this regard that there is no obligation in Article 7 of the GDPR to have a 'reject' option in the first layer of information of the cookie banner. Furthermore, the defendant notably emphasizes that Article 7.3 of the GDPR concerns the

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Withdrawal of consent: "The GDPR does not impose any similar requirement for the refusal of consent at a time when consent has not yet been given." Furthermore, the defendant emphasizes in this context that Article 4.11 of the GDPR does not also advance an obligation to have a 'refuse' option on

the first layer of the cookie banner: according to the defendant, the expression of will can be made freely, specifically, informed, and unequivocally. In this regard, the defendant believes that the expression of will is made actively.

- Fourthly, the defendant indicates that the cookie banner is in compliance with the "decision-making practice of the Contentious Chamber." The defendant indeed refers to two decisions – Decision 12/2019 of December 17, 2019, and Decision 19/2021 of February 12, 2021 – where the Contentious Chamber explicitly states, notably in the latter decision, as quoted by the defendant: "The new cookie banner no longer operates on the principle of implicit consent ('by continuing to use this website') but provides the choice between 'accepting recommended cookies' and 'modifying cookie preferences'."

- Fifthly, the defendant indicates that the cookie banner complies with the EDPB guidelines regarding consent. In this regard, the defendant states that it reads nothing about the requirement for a 'refuse' option in the first level of information of the cookie banner.

- Sixthly, the defendant indicates that the cookie banner is in compliance with the action plan of IAB Europe, which has been approved by the Contentious Chamber. The defendant states: "Mediahuis understands that the action plan of the Internet Advertising Bureau ("IAB"), validated by the Contentious Chamber on January 11, 2023, does not contain the requirement for a 'refuse' option in the first layer of information of a cookie banner. This action plan does not specify anything regarding the buttons that must appear in the first layer of information of a cookie banner."

- Seventhly, the defendant indicates that there is no violation, simply due to the fact that the practice would not be in accordance with "strategic documents of authorities." In this regard, the defendant states that these are simply strategic documents; they do not have binding character as they do not have the force of law. Furthermore, the defendant indicates that it understands from the report of the EDPB Cookie Banner Taskforce that several authorities believe that the absence of a 'Reject All' option in the same layer as the 'Accept All' option does not constitute a violation of Article 5(3) of the ePrivacy Directive, which according to the defendant indicates that there is no unanimity on this matter among European supervisory authorities. Additionally, the defendant indicates that the DPA is "not consistent" in the information it provides to the public and refers to the difference between the web pages related to cookies in the "citizen" section of the DPA's website and those in the "professional" section of the DPA's website. In this regard, the defendant emphasizes that the information on the website for professionals is not clear and refers notably to non-professional web pages of the DPA's website. The defendant also had the inconsistencies noted by a bailiff on November 27, 2023, and attached the findings as an exhibit.

- Eighthly, the defendant also responds to the conclusions of the complainant.

Assessment by the Contentious Chamber

103. Article 10/2 of the LTD states the following:

In application of Article 125, § 1, 1°, of the law of June 13, 2005, on electronic communications and without prejudice to the application of the regulation and this law, the storage of information or the obtaining of access to information already stored in the terminal equipment of a subscriber or user is only permitted provided that:

1° the concerned subscriber or user receives, in accordance with the conditions set out in the regulation and in this law, clear and precise information regarding the purposes of the processing and their rights based on the regulation and this law;

2° the subscriber or final user has given their consent after being informed in accordance with 1°.

The first paragraph does not apply to the technical storage of information or access to information stored in the terminal equipment of a subscriber or final user solely for the purpose of carrying out the transmission of a communication via an electronic communications network or providing a service expressly requested by the subscriber or final user when it is strictly necessary for that purpose. (underlining and bolding by the Contentious Chamber).

104. The European Data Protection Board²⁶ has already affirmed, just like the Court of Justice of the European Union²⁷, that the requirements imposed on the notion of "consent" in the ePrivacy Directive must comply with the consent requirements under the GDPR.²⁸ This is particularly true for cookies that involve data processing: as indicated in the report of the Cookie Banner Taskforce dated January 17, 2023, such processing indeed implies that at the time of granting consent, it must meet the conditions of the GDPR.²⁹

105. Article 4(11) of the GDPR defines consent as follows:

any freely given, specific, informed, and unambiguous indication of the data subject's wishes, by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them;

106. Point 1(a) of Article 6(1) of the GDPR states the following:

Processing shall be lawful only if and to the extent that at least one of the following applies:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

107. The joint reading of the aforementioned legal provisions and the explanation from the Court of Justice regarding the interaction between the ePrivacy Directive and the GDPR undoubtedly leads to the conclusion that the "Reject All" option must be provided by the defendant in the first layer when the defendant places a button in that same layer.

26 EDPB, Opinion 5/2019 on the interactions between the "Privacy and Electronic Communications" Directive and the GDPR, particularly regarding the competence, tasks, and powers of data protection authorities, March 12, 2019, available at: https://www.edpb.europa.eu/sites/default/files/files/file1/2019_05_edpb_opinion_e-privacydir_gdpr_interplay_fr.pdf; EDPB Guidelines 5/2020 on consent under Regulation (EU) 2016/679, v 1.1, May 4, 2020, § 6-7.

27 Judgment of the Court of Justice of the EU, *Proximus v. APD*, C-129/21, see specifically § 51: "As regards the manner in which such consent must be expressed, it follows from Article 2, second paragraph, under f), of Directive 2002/58, read in conjunction with Article 94(2) and Article 95 of the GDPR, that this consent must, in principle, meet the requirements resulting from Article 4(11) of this Regulation."

28 See also A. GOBERT, "Chapter 5. The case law of the APD regarding cookies" in M. Knockaert and J.-M. Van Gyseghem (eds.), 5 years of case law from the Litigation Chamber of the APD, Brussels, Éditions Larcier-Intersentia, (139)145, § 13: "To be valid, consent to the placing of non-essential cookies must therefore meet the conditions established by Article 4(11) of the GDPR."

29 EDPB, Report of the work undertaken by the Cookie Banner Taskforce, January 17, 2023, § 2 (Report of the work undertaken by the Cookie Banner Taskforce).

"Accept all".³⁰ Failing that, consent cannot be obtained in a "free" and "unambiguous" manner.³¹

108. Consent is, on the one hand, not "free" when the concerned individual who does not wish to give their consent (in the sense of Article 10/2, first paragraph, 2° of the LTD) is required to take additional actions to refuse consent. As indicated in Recital 42 of the GDPR: "Consent should not be regarded as having been freely given if the data subject does not have genuine freedom of choice."³² A choice implies at least an equivalent option to take another action in a similar manner (not consenting) compared to the action for which the choice is offered (consenting).³³ It should also be noted that the concerned visitor cannot close the cookie banner without making a choice, which constitutes a problematic form of what is called a "cookie wall."³⁴

109. The fact that consent is not free is sufficient in itself to establish that consent is not offered as a choice and cannot be validly obtained.

110. On the other hand, consent is not "unambiguous" when the concerned individual cannot take a similar positive action to not consent, for example, because they are unaware of the option to refuse cookies, as such an option is mentioned or can only be selected in a subsequent 'layer' of the cookie banner. In this sense, a concerned individual cannot take a clear positive action at the first layer of the cookie banner, precisely due to the absence of an alternative to not consent.³⁵ All of this cannot be

dissociated from the broader digital context in which many website managers use cookie banners, and consequently, a large number of concerned internet users encounter them daily, which can lead to a certain degree of "click fatigue."³⁶

111. The fact that consent cannot be given in an unambiguous manner is sufficient in itself to establish that consent is not offered as a choice and cannot be validly obtained.

112. Furthermore, in the next layer, the option "Reject all" is indeed displayed in the same manner as the option "Accept all," but in any case in less vibrant colors than the "accept and close" option in the first layer, moreover with a completely different number of buttons presented below in the same manner.³⁷

Example (*mutatis mutandis* for the four disputed websites) from the website of Standaard, on a screenshot of the second layer, in the defendant's summary conclusions:

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36 EDPB Guidelines 5/2020 on consent under Regulation (EU) 2016/679, v 1.1, May 4, 2020, § 87: In the digital context, many services require personal data to function. Users thus receive numerous consent requests daily, to which they must respond by clicking or swiping their screens. This can lead to a certain fatigue: when encountered too often, the warning effect of consent mechanisms diminishes. [...].

37 Cf. *Mutatis mutandis* the elements concerning the terms "privacy labyrinth" in the excessive information section, Cf. EDPB Guidelines 3/2022 on deceptive design patterns in social media platform interfaces: how to recognize and avoid them" v. 2.0, February 14, 2023, § 173.

38 Defendant's summary conclusions, point 66.

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A manifest contrast with the 'accept and close' button in the first layer of the cookie banner:

39

113. The right to data protection must certainly be linked to other fundamental rights⁴⁰ – such as the freedom to conduct a business⁴¹ – but when the legislator imposes consent for certain processing (under the ePrivacy Directive as transposed into the LTD), this consent must of course comply with the specific requirements set forth by the same legislator (under the ePrivacy Directive and the GDPR).

114. Therefore, when it is established that under the applicable legislation, consent must be obtained to place non-essential cookies – which is not subject to any discussion in this case – this implies by definition at least a direct choice, regardless of the potential granularity of consent for the placement of certain types or categories of cookies. As the complainant points out, there is no legal reason in the present cases concerning the four disputed websites for which the refusal of cookies should not be done in the same simple manner.⁴² To judge otherwise would be to ignore the requirement for consent to be "freely given" and "unambiguous" in order to obtain valid consent.

115. The defendant's argument that the complainant has no interest because he has given his consent is not relevant. Just because consent is given does not mean that the consent meets all the requirements for valid consent and thus constitutes valid consent within the meaning of Article 4.11 and Article 7.1 of the GDPR.

116. The defendant's argument that the standard is unclear and that the legislation does not mention anywhere the necessity to offer the "Reject All" option in the first layer of information in the disputed cases is also not a relevant argument. The same applies to the argument that the situation would be compliant with the EDPB guidelines on consent, simply because these guidelines do not mention anything (wrongly deducing that the guidelines require nothing) regarding the refusal option in the first 'layer' of the cookie banner.

117. The Litigation Chamber further specifies its competencies in this matter.

118. Article 8, third paragraph of the Charter of Fundamental Rights of the European Union explains that independent authorities must ensure compliance with the right to the protection of personal data. This provision underscores the importance of independent oversight and forms the basis for the establishment of supervisory authorities. Under Article 57.1 of the GDPR, supervisory authorities are competent to monitor compliance with the GDPR.⁴³ Under Article 4 of the LCA, the APD is competent

for this oversight.⁴⁴ Under Article 32 of the LCA, the Litigation Chamber is the administrative litigation body of the APD; it decides on a case-by-case basis.

119. Since the entry into force of the law of December 21, 2021, transposing the European Electronic Communications Code and amending various provisions regarding electronic communications on January 10, 2022 (LCE), the APD is now competent under Belgian law to monitor the provisions related to the placement and use of cookies (i.e., "the storage of information or the obtaining of access to information already stored in the terminal equipment of a subscriber or user"). The aforementioned law amended the LCE, among other things. More specifically, Article 256 of the law of December 21, 2021, provides for the repeal of Article 129 of the LCE and the transfer of this provision into the law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data (LTD).⁴⁵ Given that the APD has residual competence to ensure compliance with the provisions of the LTD, the material competence of the APD regarding the placement and use of cookies is thus confirmed.

43 See also Article 32 of the LCA regarding the oversight competencies for the Litigation Chamber.

44 Article 4, § 1 of the LCA: "The Data Protection Authority is responsible for monitoring compliance with the fundamental principles of the protection of personal data, within the framework of this law and laws containing provisions regarding the protection of the processing of personal data."

45 Law of December 21, 2021, transposing the European Electronic Communications Code and amending various provisions regarding electronic communications, M.B. December 31, 2021. Decision on the merits 1132024 — 35/70

120. The European legislator has, particularly in light of the increasing digitization of society, expressly chosen to entrust the enforcement of the GDPR to an authority that is in relation with similar authorities in other Member States of the European Economic Area.⁴⁶ The supervisory authority must therefore be able to enforce the rules, not only in view of legal developments but also technological ones. The legislator wished in this context for the interpretation of a factual situation to be evaluated by an authority.

121. The fact that certain legal or technological developments have an impact on a specific decision-making practice is a logical consequence of this approach – and it is also taken into account in this case within the framework of the sanction (see below, section III.1.1.). An open norm does not prevent the imposition of measures, nor even the imposition of an administrative fine, precisely because technological developments (at a rapid pace) require strong, adequate, and proportional enforcement in new circumstances.

122. In short, the authority cannot merely interpret an "open" norm; it must do so; any argument presupposing non-application on the grounds of an "open norm" is not relevant.

123. Regarding the defendant's argument that, in particular, Article 7 of the GDPR does not explicitly impose the option to refuse, reference is also made to the previous argumentation within the framework of the open norm. The Contentious Chamber indeed examines the legality of consent in light of the definition and conditions related to the notion of consent as defined by the legislator: it concerns consent under Article 10/2 of the LTD and Article 6.1.a of the GDPR, as defined in Article 4.11 of the GDPR.

124. Concerning the defendant's argument that the cookie banner complies with the previous decision-making practice of the Contentious Chamber, it should be emphasized that the decisions of the Contentious Chamber do not have precedential value.⁴⁷ Although this argument may be relevant in the context of potential measures (particularly the sanction), the legal assessment that corresponds to the most accurate legal view – based on the most recent case law as well as the perspective of the EDPB – can hardly be omitted solely on the basis of this argument.⁴⁸

46 Recital 7 of the GDPR: "These developments require a strong and more coherent data protection framework in the Union, accompanied by rigorous enforcement of the rules, as it is important to foster the trust that will allow the digital economy to develop across the entire internal market."

47 Judgment of the Brussels Court of Appeal (Chamber 19A, Market Court Section, December 1, 2021, 2021/AR/1044, § 7.0.2.: "The Belgian legal system grants no precedential value, either to administrative decisions or to judicial decisions (see in particular Article 6 of the Judicial Code.)"

(Translator's note: freely translated by the Translation Service of the Data Protection Authority, in the absence of an official translation)

48 Regarding the evolution, see: A. GOBERT, "Chapter 5. The case law of the DPA regarding cookies" in M. Knockaert and J.-M. Van Gyseghem (eds.), 5 years of case law of the Contentious Chamber of the DPA, Brussels, Éditions Larcier-Intersentia, (139)148-9, § 20.

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125. The argument that the Dispute Chamber would have approved an action plan of a sectoral organization that would be directly related to the contentious situations of the case at hand is not a relevant argument either. As previously stated, the decisions of the Dispute Chamber do not have precedential value. Furthermore, the actor referred to by the defendant is completely unrelated to the present proceedings.

126. Moreover, it should be noted that under Article 5.2 and Article 24 of the GDPR, it is the data controller who is responsible for ensuring compliance with the application of the GDPR and for taking appropriate technical and organizational measures in this regard. The defendant does not contest in any way its responsibility regarding the processing for the substantive assessment of its processing activities, so that if the argument cannot already be relevant on the merits, it is also more than evident that the argument misses its target in a formal sense.

127. Regarding the argument that the guidelines of the supervisory authority and the European Data Protection Board (EDPB) do not have the force of law: this argument is obviously correct in a formal sense and within the hierarchy of legal norms. However, this does not mean that they do not (should not) have any authoritative value, at least because Article 57.1.f) of the GDPR imposes on the supervisory authority the obligation to raise awareness among data controllers of the obligations that they have under the regulation, just as Article 70.1.u) entrusts the EDPB with the mission to ensure cooperation among supervisory authorities and, where appropriate, to formulate guidelines, best practices, and recommendations to ensure the consistent application of the GDPR (Article 70.1.d) of the GDPR).

128. The supervisory authority and the EDPB have the necessary expertise to issue guidelines, recommendations, and examples of balanced and legally sound best practices. These guidelines and recommendations have a 'soft law' character, which has a normative effect. Although data controllers retain the right to challenge the legal interpretation, their authority cannot be questioned. The supervisory authority provides clear and intelligibly formulated examples and practices in its Cookie Checklist.⁴⁹ This checklist emphasizes that data controllers can always oppose specific interpretations. No judicial remedy is withdrawn from the defendant in this regard.

129. More specifically, the Dispute Chamber further examines the defendant's claim that the supervisory authority is not consistent in communicating information, as it does not explicitly refer to the opt-out option on its website intended for citizens, unlike the page intended for professionals. Once again, this argument is not relevant, as it is also the authority's responsibility to better inform data controllers of their obligations (Article 57.1.d of the GDPR, i.e., a distinct and autonomous legal task).

130. Since the defendant does not deny that the professional page is or can be addressed to it, the question is therefore why the defendant attempts to draw an argument from the difference between this page and the page addressed to citizens to support that there has been no violation or that no violation can be attributed to it. Moreover, this argument precisely proves that the information provided by the supervisory authority on its website regarding the data controller is complete and undeniably consistent with the present decision of the Dispute Chamber.

131. The Dispute Chamber concludes that the defendant commits a violation of Article 10/2 of the LTD in conjunction with Article 6.1.a of the GDPR, given that the consent of the data subjects, in light of the placement of cookies⁵⁰ via its website, is not lawful as it is not obtained freely and unambiguously. The free and unambiguous nature of consent is fundamental to being able to speak of lawful consent; in the absence of such lawful consent, the processing of personal data is not lawful.

II.3.2. Use of misleading button colors

Position of the complainant

132. The argumentation of the complainant is stated as follows:

"The 'Accept and close' button in the first level of cookie banners on websites always has a bright color that stands out (red, blue, or black with white text) against a white background. This is while the 'More information' button has a color that almost blends in with the background color of the cookie banners (light gray with dark gray letters on a white background).

By expressly highlighting the 'Accept and close' button compared to the option to refuse cookies, internet users like the complainant are explicitly encouraged to click on 'Accept and close'. Research has also shown that if the button used to give consent is a (much) more visible color than the refusal button, consent is given 1.7 times more often than if both buttons are the same color.

50 Cookies that do not fall under the exceptions of Article 10/2 of the LTD.

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Thus, the consent obtained by the defendant for the placement of cookies cannot be qualified as "unequivocal" consent (Article 4(11) of the GDPR), so that the consent obtained from the complainant is not valid (Article 6(1)(a) of the GDPR in conjunction with Article 5(3) of the ePrivacy Directive, in conjunction with Article 10/2 of the LTD), thereby preventing the defendant from proving that the complainant consented to the processing of his personal data (Article 7(1) in conjunction with Article 5(2) of the GDPR).

As already highlighted in the complaint, it also follows from the report of the EDPB Cookie Banner Taskforce that the contrast and colors used in the cookie banner cannot be "manifestly misleading," as this leads to "involuntary" consent and thus invalid consent. [...] It also follows from the guidelines of numerous controllers, including the [...] Greek, the [...] Austrian, and the [...] Czech, that data controllers cannot use misleading button colors that encourage users to click on "Accept and close."

According to the EDPB, if users of a website are encouraged, through visual elements such as color, to make decisions contrary to their privacy interests, this must be considered a violation of the principles of lawfulness, fairness, and transparency referred to in Article 5(1)(a) of the GDPR:

[English citation from the EDPB guidelines 03/2022 regarding misleading design in interfaces on social media platforms]

As already explained above, establishing that the use of misleading button colors in the defendant's cookie banners constitutes a violation is not an application of controller guidelines but rather a straightforward and direct application of the legislation (in accordance with the prevailing legal opinion).

Upon reading a unique action plan approved or (previous) individual decisions of the Contentious Chamber in some specific cases, where there was no question of misleading button colors on cookie banners, one cannot precisely assert that they should serve as applicable legal design. [...] As already indicated in these conclusions, the Market Court has also confirmed that the decisions of the Contentious Chamber of the DPA did not have precedential value. [...]

When the complainant visited the websites, it was also true that at the second level of the cookie banners, the "Accept all" button had the same eye-catching color as at the first level of the cookie banner, while the "Reject all" button had the same discreet color as at the first level of the cookie banner.

However, the current cookie banners on the defendant's websites all have these buttons "Reject all," "Accept all," "No agreement," and "Agreement" at the second level of the cookie banner displayed in the same white color with light gray letters. [...] This demonstrates that adapting the cookie banners and offering a neutral choice without 'dark patterns' is indeed possible for the defendant and that other misleading button colors are a deliberate choice to complicate the refusal of cookies for users. It also demonstrates that the defendant apparently also believes that the old cookie banner did not meet the applicable legal requirements. [...]

The complaint must, however, be assessed based on the facts at the time of the filing of the complaint. Otherwise, the defendant could evade any processing liability under data protection legislation by deleting personal data in the context of a complaint or investigation. This does not detract from the fact

that the violation did indeed occur (for some time). Furthermore, this does not eliminate all the violations described in this paragraph."

Defendant's Position

133. The defendant's defense is stated as follows (the Contentious Chamber summarizes):

"5th plea (in the alternative): Different colors in the cookie banner do not constitute a violation of Articles 5.1.a and 6.1.a of the GDPR in connection with Article 10/2 of the LTD and with Article 125, § 1, 1° of the LCE."

a. Firstly, the defendant argues primarily that: "The complaint is moot insofar as Mediahuis has not used different colors in the second layer of information of the cookie banners since November 20, 2023."

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b. Secondly, the defendant argues in the alternative: "Absence of violation of Article 6.1.a of the GDPR or Article 10/2 of the LTD and Article 125, § 1, 1° of the LCE." In this regard, the defendant reiterates that the complainant gave their consent and that there is "no prohibition" on using different colors to obtain consent in cookie banners.

c. Thirdly, the defendant raises another point in the alternative: "Absence of violation of the principle of lawfulness, fairness, and transparency (Article 5.1.a of the GDPR)." On this point, the defendant asserts that there is no violation of this principle, as there is "no prohibition" on using different colors in the cookie banner used for consent, and furthermore, the use of colors is in line with the decision-making practice of the Enforcement Chamber, that the use of colors complies with the IAB action plan which has been approved by the Enforcement Chamber, and that there is no question of deception (regarding the allegedly misleading nature of the buttons).

d. Fourthly, the defendant claims "in any case" that: "Mediahuis does not violate Articles 10/2 of the LTD, 125 of the LCE, 5.1.a and 6.1.a of the GDPR because the use of colors in its cookie banners would not be fully compliant with the strategic documents of authorities." In this regard, the defendant asserts that such documents do not have the force of law.

e. Fifthly, the defendant responds to the conclusions of the complainant.

Assessment of the Enforcement Chamber

134. As explained by the EDPB in the guidelines regarding misleading designs on social media interfaces, in the case of a potential misleading design, the principle of fairness set out in Article 5.1.a) of the GDPR can be analyzed when verifying whether there has been a violation of the legislation.⁵¹

135. On each of the four disputed websites, the first 'layer' of the cookie banner is displayed almost identically to that on the website of the newspaper "De Standaard" – albeit with different colors, depending on the relevant disputed news website:

⁵¹ EDPB, Guidelines 3/2022 on deceptive design patterns in social media platform interfaces: how to recognize and avoid them" v. 2.0, February 14, 2023, 4. (Guidelines 3/2022 on misleading designs on social media interfaces: how to recognize and avoid them).

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136. By using certain brighter colors on the four disputed websites, possibly with the main reason of encouraging the data subject to consent to the placement of cookies, the Enforcement Chamber expressly considers that the obligation of fairness provided for in Article 5.1.a) of the GDPR has been violated, and that it also compromises the legally valid obtaining of consent, thus violating Article 6.1.a) of the GDPR. Indeed, consent cannot be obtained unequivocally when a data subject is "led" to perform a certain act.

137. What is clear is that the use of eye-catching colors in the first layer of the disputed cookie banners, where the button displaying the option for full acceptance ("accept and close") shows the most explicit color in a more pronounced contrast, aims to reflect a certain choice that leads to more intrusive personal data processing following the placement of cookies.

138. The report of the EDPB Cookie Banner Taskforce indicates, regarding the use of colors, that no general standard can be imposed on data controllers, but that the assessment must be made on a

case-by-case basis.⁵³

139. In the present cases, the defendant uses different eye-catching colors that create a supposed deceptive ease of choice ("deceptive snugness"⁵⁴) for a data subject:

52 Partial reproduction of document 1 from the administrative file, complaint, p. 9.

53 EDPB, Report of the work undertaken by the Cookie Banner Taskforce, January 17, 2023, § 17.

54 EDPB, Guidelines 3/2022 on deceptive design patterns in social media platform interfaces: how to recognize and avoid them, v. 2.0, February 14, 2023, § 177.

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a. On the website of the newspaper "De Standaard," the option "Accept and close," which leads to the most data processing, is highlighted in dark red, while to access the alternatives, one must click on a light gray banner on a white background;

b. On the website of the newspaper "Het Belang van Limburg," the option "Accept and close," which leads to the most data processing, is highlighted in black, while to access the alternatives, one must click on a light gray banner on a white background;

c. On the website of the newspaper "Het Nieuwsblad," the option "Accept and close," which leads to the most data processing, is highlighted in dark blue, while to access the alternatives, one must click on a light gray banner on a white background;

d. On the website of the newspaper "Gazet van Antwerpen," the option "Accept and close," which leads to the most data processing, is highlighted in bright red, while to access the alternatives, one must click on a light gray banner on a white background.

140. Interfaces designed, as in this case, with misleading ease of choice undeniably encourage a concerned individual to select the options leading to the most data processing, particularly because they do not know how many additional steps they must take before they can choose not to place cookies (i.e., not to consent to their placement). The concerned individual knows that with this convenient option in the first layer of the cookie banner, they are choosing the "path of least resistance" - without necessarily reflecting their actual and informed preference regarding consent.

141. The defendant's argument that the complaint is "irrelevant" on this point because in the second layer of information, the use of different colors is no longer employed (certainly after an adjustment during the proceedings) is evidently not relevant. The assessment in this matter concerns the use of colors in the first layer of the cookie banner, and the evaluation of the Contentious Chamber is not limited in the file (including the letter of February 5, 2024, with the alleged violations) to the second layer of the cookie banner.

142. The argument that the concerned complainant did indeed give their consent is also not relevant, given that whether consent was given or not does not prevent the assessment of the fairness of the processing. The fact that consent was given is also not ipso facto sufficient to assert that consent was given validly.

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143. The argument that there is "no prohibition" on using different colors is correct in a formal sense. However, the Contentious Chamber has already explained above that this does not prevent the choice of certain colors from violating the obligation of fairness in light of the processing activities of personal data, and that the unambiguous nature of consent cannot be ensured.

144. The argument that the Contentious Chamber would have approved an action plan of a sectoral organization that would be directly related to the disputed situations of the case at hand is also not a relevant argument. As previously stated, the decisions of the Contentious Chamber do not have precedential value. Moreover, this is an actor who is completely foreign to the present procedure. Furthermore, it should be noted that under Article 5.2 and Article 24 of the GDPR, it is the data controller who is responsible for ensuring compliance with the application of the GDPR and for taking appropriate technical and organizational measures in this regard. The defendant does not contest their responsibility in the material assessment of their processing activities, so that if the argument is not relevant at the material level, it is also more than evident that it misses its objective in a formal sense.

145. The Contentious Chamber does not dispute - as the defendant claims - that the guidelines of the supervisory authority and the European Data Protection Board do not have the force of law. However,

this does not mean that they do not (should not) have any authoritative value, at least because Article 57.1.f) of the GDPR imposes on the DPA the obligation to raise awareness among data controllers of their obligations under the regulation, just as Article 70.1.u) imposes on the European Committee the obligation to cooperate with supervisory authorities and, where appropriate, to formulate guidelines, best practices, and recommendations to ensure the consistent application of the GDPR (Article 70.1.d) of the GDPR).

146. For all these reasons, it is established that misleading colors are used in the first layer of the cookie banner, which constitutes a violation of the obligation of fairness under Article 5.1.a. of the GDPR. Since consent is not unambiguous, one cannot speak of legally valid consent under Article 6.1.a) of the GDPR.

II.3.3. Withdrawal of consent, cf. Article 7.3 of the GDPR

Position of the complainant

147. The position of the complainant is as follows:

"On none of the websites of the [defendant] in question is it as easy to withdraw consent as it is to accept cookies. Accepting all cookies is done with a single and simple click (or two clicks if one presses the 'More' button).

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of information"), whereas withdrawing consent is not possible with a single click. Instead, users must navigate to a specific section of the website to withdraw cookies. At the very bottom of the page, among a long list of various other links, there is a link titled "Manage Privacy Preferences." By clicking on this link, the user can "Reject All," "Accept All," or click for each purpose on "Disagree" or "Accept."

Under the first sentence of Article 7(3) of the GDPR, the data subject has the right to withdraw consent at any time. The withdrawal of consent should be as easy as granting consent under Article 7(3), third sentence of the GDPR. Given that the requirements of Article 7 of the GDPR are not met, the defendant also violates Article 12(1) of the GDPR, Article 17(1)(b) of the GDPR, Article 5(3) of the ePrivacy Directive, and Article 10/2 of the LTD. As a result, the defendant also does not act in accordance with the principles of lawfulness, transparency, and fairness (Article 5(1)(a) of the GDPR).

Furthermore, the ability to withdraw consent just as easily is indeed a condition for the consent given to be absolutely qualified as valid under Article 7(1) in conjunction with Article 4(11) of the GDPR (and thus also for the question of whether the conditions of Article 10/2 of the LTD and Article 125, § 1, 1° of the LCE are met [...]). The EDPB has also confirmed this in its guidelines on consent:

"The GDPR considers the existence of an easy withdrawal as a necessary aspect of valid consent. If the right to withdraw does not meet the requirements of the GDPR, the consent mechanism of the data controller is not compliant with the GDPR. [...]" (own emphasis)

The Cookie Banner Taskforce report of the EDPB also emphasizes that withdrawing consent for cookies must be as simple as giving it [...]

The EDPB's guidelines on consent also confirm this point and explain it as follows:

"However, when consent is obtained electronically solely by a click, a tap, or by swiping the screen, data subjects must, in practice, be able to withdraw that consent by the same means." [...]

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The EDPB's guidelines on deceptive design and dark patterns explicitly reiterate this same requirement [...].

Therefore, the defendant must provide the complainant with a one-click option to withdraw consent. If a clearly visible option is offered to give consent, there must also be an equally clearly visible option to withdraw consent. A link titled "Manage Privacy Preferences," in small print, among a long list of other links, at the very bottom of the defendant's website pages—which takes time to scroll down to—clearly does not meet these requirements. A floating button, permanently visible (hover), allowing for the withdrawal of consent, would meet these requirements.

The defendant has somewhat improved the ability to withdraw consent and modify cookie settings compared to the time when the complainant filed the complaint. It is now possible—once the "Manage

Privacy Preferences" button has been found and clicked—to click on a "Reject All" button, whereas previously it was only possible to withdraw consent individually for each distinct purpose [...]. This demonstrates that the defendant can easily offer an equivalent option to withdraw cookies once the user has found the option to adjust cookie settings, and that the defendant had deliberately omitted to do so previously. It also shows that the defendant itself apparently considers that the previous cookie banner did not meet the applicable legal requirements of Article 7(3) of the GDPR.

However, the complaint must be assessed based on the facts at the time of the filing of the complaint. Otherwise, the defendant could evade any processing liability under data protection legislation by deleting personal data in the context of a complaint or investigation. This does not change the fact that the violation did indeed occur (for a certain period). Furthermore, following the changes made by the defendant, it is still not as easy to withdraw consent as it is to give it; it has only become simpler than it was at the time of the filing of the complaint.

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Defendant's Position

148. The defendant's position is as follows (the Contentious Chamber summarizes):

"6th plea (in the alternative): The withdrawal of consent does not constitute a violation of Article 4.11 in conjunction with Article 7.3 of the GDPR, nor of Articles 10/2 of the LTD and Article 125, § 1, 1° of the LCE."

a. Firstly, the defendant asserts "as a primary argument" that there is no procedural interest for the complainant, as it appears from the file that the complainant did not withdraw their consent – while they had indeed given it. Furthermore, the defendant emphasizes that on February 10, 2023, no consent had been given by the complainant, but rather (probably) on other later dates.

b. Secondly, the defendant asserts "in the alternative" that a user can withdraw their consent as easily as they give it, and that the complaint is therefore moot on this point. In this regard, the defendant highlights that a "manage privacy preferences" button is available on every webpage of the four disputed websites, allowing a user to withdraw all consents with a single click.

c. Thirdly, the defendant asserts "in the alternative" that there is no violation of Article 4.11 of the GDPR, given that the definition contained therein does not provide anything regarding the withdrawal of consent already given. This situation is addressed in Article 7.3 of the GDPR.

d. Fourthly, the defendant asserts "in the alternative" that there is no violation of Article 7.3 of the GDPR. In this regard, the defendant emphasizes that the terms "as simple [...] as" in the standard are an open concept that is not legally interpreted concretely, with the defendant explaining in concreto why the disputed websites are indeed compliant with the standard. In the previous situation of the website, there was no "Reject all" option in this regard. The defendant states the following in this regard: "A visitor who wanted to fully withdraw their consent had to click several more times compared to the situation where they wanted to give their full consent. This single difference (a number of clicks) cannot constitute a lack of equivalence in the sense of Article 7.3, last sentence of the GDPR."

e. Fifthly, the defendant asserts "in the alternative" that there is no violation of Article 10/2 of the LTD and Article 125, § 1, 1° of the LCE. Regarding this point, the defendant claims that the complaint concerning the 3rd alleged violation pertains to the withdrawal of consent already given and not to the lawful placement of cookies initially placed – so that the provisions raised "from the outset" by the Contentious Chamber are not applicable.

f. Sixthly, the defendant responds to the complainant's conclusions regarding this point.

Assessment by the Contentious Chamber

149. First of all, it is necessary to analyze the situation regarding the withdrawal of consent at the time of the complaint (the 'old' situation) and before the adaptations made by the defendant during the procedure. These adaptations of the disputed websites made it possible to withdraw consent in the 'new' situation, after clicking on the 'manage privacy preferences' link on the disputed websites, with a single click ("Reject all").

150. In the 'old' situation, a data subject indeed had to proceed with "multiple clicks" (according to the defendant's own terms) in order to withdraw consent, whereas the initial consent ("accept and close") required only a single click. The defendant expressly acknowledges that a visitor (here referred to as a

data subject) had to click "a few more times compared to the situation where they wanted to give their full consent."

151. In this 'old' situation, the act of withdrawing consent was therefore clearly not as simple as giving it, which constitutes a violation of Article 7.3 of the GDPR. The fact that the 'withdrawal' of consent is a relative notion – in the sense that it must be "as simple" to withdraw consent as it is to give it – does not change this. Such a qualification as a relative notion in legal terms may be correct, but in the relevant circumstances, the "number of clicks" referred to by the defendant himself are clearly relatively more clicks than the single click on the "accept and close" button in the cookie banner.

152. Regarding the 'new' situation, after the adaptations made by the defendant during the procedure: in the new situation, withdrawing consent after clicking on the 'privacy preferences' link on each webpage of each disputed information website is possible with a single click ("Reject all"). The choice is presented on a cookie banner identical to the second layer of the cookie banner proposed for giving consent: this practice – based on the documents in the file – does not lead to the finding of a violation.

153. The website does not require a mandatory "permanently visible" button for the correct withdrawal of consent. If a data subject can withdraw their consent under Article 7.3 of the GDPR in two clicks from any webpage of the disputed websites, this is in line with the spirit of the legal provision. A person
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The concerned party can reasonably assume that the parameters related to cookies are located at the bottom of a web page. Therefore, the individual can always access information regarding the withdrawal of consent through a single button.

154. As highlighted by the EDPB in the report of the Cookie Banner Taskforce, it is sufficient for a link to be available on the website and in a "visible and standardized location."⁵⁵ Placing a direct link at the bottom of each web page leading to a banner where consent can be withdrawn using a simple button meets this formulation. Furthermore, in the same report, the EDPB emphasized that the legislation only states that easily accessible solutions for withdrawing consent must be provided, but that "it cannot be imposed" that a "specific withdrawal solution" be implemented and "in particular, the design of a hover solution" cannot therefore be imposed on a data controller in the current legal context.⁵⁶

155. The defendant rightly points out that the requirement that consent under Article 7.3 of the GDPR must be able to be withdrawn "as easily" as it was given presupposes a relative situation. In this sense, for the proper functioning of a website – which is, among other things, in the interest of the concerned visitor – one cannot expect that the withdrawal of consent occurs exactly in the same manner if it means that it must occur (in the most literal sense) "at any time" in this way.

156. In this reasoning, a "hover button" (the proposal put forward by the complainant) would indeed not be sufficient either, as such a "hover button" does not provide exactly the same visual representation as a cookie banner (for granting consent) to withdraw consent at any time during the visit to the website. Indeed, this would have a blocking effect for the internet user, which is of course manifestly unreasonable.

157. Regarding the 'old' situation, a violation of Article 7.3 of the GDPR must indeed be established. As nothing indicates that this violation persists in the 'new' situation after the adaptations made in this regard by the defendant, the Contentious Chamber decides to reprimand the defendant on this point. No other coercive or punitive measures are appropriate in this regard.

55 EDPB, Report of the work undertaken by the Cookie Banner Taskforce, January 17, 2023, § 32.

56 EDPB, Report of the work undertaken by the Cookie Banner Taskforce, January 17, 2023, § 35.

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II.3.4. Use of legitimate interest for the placement of cookies requiring consent and alleged violation of transparency and information obligations

Position of the complainant

158. The position of the complainant is as follows:

"When the complainant visited the websites, the websites of the [defendant] in question contained a button for legitimate interest in the second layer of the cookie banner that was set by default to 'Accept' for the purpose of 'conducting an "Extended Measurement" in order to "be able to measure advertising and content performance. This allows for the deduction of information about the audience that has

seen the advertisements and content. The data can be used to build or improve the user experience, systems, and software.' This 'legitimate interest button' allowing for such measurements was placed next to a consent button for the same purpose and was only visible when the internet user clicked on the '+'.

The [defendant] in question thus claimed to have a legitimate interest (Art. 6.1.f of the GDPR) to carry out 'extended measurements' if the complainant did not give consent (Art. 6.1.a of the GDPR). The legitimate interest thus constituted the 'fallback' basis for the defendant. The defendant thus illicitly transitions from an 'opt-in' system based on Article 6.1.a) of the GDPR to an 'opt-out' system based on Article 6.1.f) of the GDPR.

Legitimate interest was and still is not a valid legal basis for the placement and reading of cookies that are not strictly necessary, such as those placed for the purpose of conducting 'extended measurements' (cf. Article 5(3) of the ePrivacy Directive in conjunction with Article 10/2 of the LTD). This has been reaffirmed in the report of the EDPB Cookie Banner Taskforce [...] and in the guidelines of national regulators.

It is true that other grounds under Article 6 of the GDPR may be used in very limited cases for the placement and reading of cookies. But this only applies insofar as they are strictly necessary cookies and solely for the purpose of sending communications via an electronic communications network (Article 5(3) of the ePrivacy Directive in conjunction with Article 10/2 of the LTD). The carrying out of 'extended measurements' by the defendant does not fall under this strict exception.

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The further processing of personal data obtained through cookies requiring consent must also be based on the foundation of consent, as confirmed by both the EDPB and the EDPS.

[...] This also applies to the further processing of data to carry out "extended measures" by the defendant.

Furthermore, it is misleading for the defendant to suggest that consent is the basis for processing, but when this consent is not given, it simply shifts to the basis of legitimate interest, without respecting the choice made by the complainant to refuse consent.

The defendant has thus violated the principles of lawfulness, fairness, and transparency (Art. 5.1.a) of the GDPR). This behavior is indeed contrary to Article 6 of the GDPR and Article 5(3) of the ePrivacy Directive, as well as Article 10/2 of the LTD, and is therefore unlawful.

The EDPB guidelines on consent also explicitly state that this behavior of the defendant is unfair (Art. 5.1.a) of the GDPR):

"It is important to note that if a data controller chooses to rely on consent for part of the processing, it must be prepared to respect that choice and to cease that part of the processing if an individual withdraws their consent. Giving the impression that data is being processed on the basis of consent, while actually relying on another legal basis, would be intrinsically unfair to the data subjects.

[...] In other words, the data controller cannot substitute consent for other legal bases. For example, it is not permitted to retrospectively use the legal basis of legitimate interests to justify processing when issues have arisen regarding the validity of consent." [...] (own emphasis)

Furthermore, the cookie banner did not contain information about the alleged legitimate interest, nor an option to object at the first level of the cookie banner.

The only possibility to object and even to receive information about the invoked legitimate interest was hidden in the second layer of the cookie banner. The text "Set Preferences" included at the first level of information of the cookie banner also did not contain this information or the possibility to object.

Moreover, even in the second level of information, one had to click on the plus sign (+) next to "Extended Measure" to change the defendant's "Legitimate Interest" to "Do Not Accept."

In other words, to oppose the defendant's alleged legitimate interest and to be informed about it, the internet user had to click multiple times, which they do in practice only in 2% of cases.

This is contrary to Article 21.4 of the GDPR and Article 12.2 of the GDPR, given that both the fact that

the defendant based its processing (as a subsidiary basis) on its alleged legitimate interest and the possibility to object to this alleged legitimate interest of the defendant were not explicitly brought to the attention of the data subject. Therefore, the behavior of the defendant was also not transparent (Art. 5.1.a) of the GDPR).

Furthermore, it is also incomprehensible that the defendant apparently assumed that if a data subject did not consent to the processing of the questioned "extended measures," they would also not object to the processing under Article 21 of the GDPR. However, the cookie banner seemed to assume that data subjects must express the same wish not to have their data processed twice: once as a refusal of consent and then as an additional objection to the same processing activity (which constitutes a "double opt-out").

In light of the above, the defendant has violated the principles of lawfulness, regularity, and transparency (Art. 5.1.a) of the GDPR).

Fortunately, the defendant has already removed references to "legitimate interest" from its cookie banners. For the defendant, the integration of a "legitimate interest" in the cookie banners is therefore unnecessary and easily modifiable, leading to the conclusion that the defendant had in fact already deliberately chosen to include a reference to legitimate interest in its cookie banners. This also shows that the defendant itself apparently considers that the previous cookie banner did not meet the applicable legal requirements and that the defendant therefore never had a legitimate interest in carrying out "extended measures," since the defendant speaks of an "unnecessary and irrelevant reference to legitimate interest."

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However, the complaint must still be assessed based on the facts at the time of the introduction of the complaint. Indeed, otherwise, the respondent could always evade any liability for processing under data protection legislation by remedying violations of the GDPR after the introduction of a complaint or during an investigation. This does not detract from the fact that the violation did indeed occur (for a certain period).

Position of the defendant

159. The defendant's defense is as follows (the Contentious Chamber summarizes):

"7th plea (in the alternative): The reference to 'legitimate interest' does not constitute a violation of Article 6.1.f) of the GDPR, nor of Article 10/2 of the LTD and Article 125, § 1, 1° of the LCE."

a. Firstly, the defendant asserts "as a primary argument" that there is a lack of sufficient personal interest on the part of the complainant regarding the alleged reliance on legitimate interest. In this regard, the defendant notably claims that no cookie is placed in the case of the complainant, as the complainant has given consent for the placement of cookies.

b. Secondly, the defendant asserts "in the alternative" that the complaint is moot because the current cookie screens of Mediahuis no longer refer to legitimate interest. The defendant notes that during the same period as the transaction procedure, a number of adaptations regarding the placement of cookies were prepared under legitimate interest (and ultimately implemented on December 22, 2023).

c. Thirdly, the defendant asserts "in a further alternative" that there is no violation of Article 6.1.f) of the GDPR and that the complaint is unfounded to the extent that it presupposes that legitimate interest can never serve as a legal basis for cookies.

d. Fourthly, the defendant asserts "in a further alternative" that there is no violation of Article 10/2 of the LTD and Article 125, § 1, 1° of the LCE. The defendant states: "[...] if under Article 10/2 of the LTD, the exception to the rule (consent) applies, it goes without saying that in such a case, the rule itself (consent) does not apply."

e. Fifthly, the defendant responds to the complainant's conclusions regarding this part.

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"8th plea (in the alternative): Absence of violation of Articles 5.1.a, 12.2, and 21.4 of the GDPR regarding the transparency of the cookie banner."

a. Firstly, the defendant asserts "as a primary argument" that the complaint is moot, given that there has been "no legitimate interest" since December 23, 2023. In this regard, the defendant claims that

any reference to legitimate interest was removed on December 22, 2023.

b. Secondly, the defendant asserts "in the alternative" that there is no violation of Article 5.1.a) of the GDPR. In this regard, the defendant claims that the 'charge' under Article 5.1.a) of the GDPR is unclear, that the intention of using its cookie banner complies with legal standards, and that legitimate interest can indeed coexist with the mention of consent.

c. Thirdly, the defendant asserts "in the alternative" that there is no violation of Article 12.2 of the GDPR. On this point, the defendant claims that in this case, there can be no question of a violation, because the obligation to facilitate would only exist when exercising the right (as referred to in Article 21.4 of the GDPR).

d. Fourthly, the defendant asserts "in the alternative" that there has been no violation of Article 21.4 of the GDPR, referring to the information in the privacy policy and the information at the time of the first contact with users.

e. Fifthly, the defendant responds to the complainant's conclusions regarding this point.

Assessment by the Contentious Chamber

160. The defendant admits that cookies were placed based on legitimate interest, of which at least some should have been placed based on consent in accordance with the ePrivacy directive and its transposition into the LTD. The cookies installed to carry out "extended measurements" regarding the use of the website, notably for advertising purposes (at least concerning the analysis of the reach and effectiveness of the cookies in question), are not, by definition, strictly necessary. Such cookies therefore require consent under Article 10/2 of the LTD, but also under Article 6.1.a) of the GDPR for the subsequent processing of personal data.

161. Furthermore, as the EDPB highlighted in the Cookie Banner Taskforce report, the use or mention of legitimate interest as a legal basis in the cookie banner can be a source of confusion for users, who may think that they must...

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to refuse twice in order not to have their personal data processed.⁵⁷ In this sense, the legal basis for placing a cookie should therefore be either based on legitimate interest or based on consent.

162. In the absence of given consent, one cannot choose to provide legitimate interest as a 'fallback' legal basis. Not only is this not very transparent towards the data subjects whose consent is being sought, but it is also not permitted in light of the intention of Article 10/2 of the LTD (as a transposition of Article 5.3 of the ePrivacy Directive) and Article 6 of the GDPR. These two provisions indeed require that a data controller carries out the processing of personal data based on a single legal basis. As the Contentious Chamber has already indicated in several decisions⁵⁸, the EDPB also specifies this in its Guidelines on Consent:

The application of one of these six legal bases must be established before the processing activity and in connection with a specific purpose.

It is important to note that if a data controller chooses to rely on consent for part of the processing, they must be prepared to respect this choice and to cease that part of the processing if an individual withdraws their consent. Indicating that the data will be processed on the basis of consent, while the processing is based on another legal basis, would be fundamentally unfair to the data subjects.⁵⁹

163. The Contentious Chamber believes that it does not adopt an (unnecessarily) restrictive interpretation of what constitutes strictly necessary cookies.⁶⁰ However, the legislator currently leaves no room for another interpretation and explicitly speaks of a "strictly necessary" nature (Article 10/2 of the LTD). Judging that cookies such as certain analytical cookies - which are not strictly necessary for the proper functioning of the website - can be placed on the basis of legitimate interest would not only reflect a "lenient" or "flexible" attitude, but would also be an interpretation contra legem. This situation applies a fortiori to cookies used for marketing purposes. The Contentious Chamber applies the applicable legal rules to the facts.

⁵⁷ Cf. EDPB, Report of the work undertaken by the Cookie Banner Taskforce, January 17, 2023, § 22.

⁵⁸ Contentious Chamber, Decision on the Merits 133/202 of December 2, 2021, point 56-9;

Contentious Chamber, Decision on the Merits 147/2022 of October 17, 2022, point 18; Contentious

Chamber, Decision on the Merits 105/2023 of August 1, 2023, point 98.

59 EDPB Guidelines 5/2020 on Consent under Regulation (EU) 2016/679, v 1.1, May 4, 2020, § 121-2.

60 Cf. A. GOBERT, "Chapter 5. The Jurisprudence of the APD on Cookies" in M. Knockaert and J.-M. Van Gyseghem (eds.), 5 Years of Jurisprudence of the Contentious Chamber of the APD, Brussels, Éditions Larcier-Intersentia, (139)142-142, § 8.

the author here speaks of a "strict interpretation of Article 5, § 3 of the ePrivacy Directive."

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164. There has been no independent finding – for example by the Inspection Service – of the cookies that were placed, nor of their extent. In any case, the defendant's acknowledgment of the unlawful placement of cookies based on legitimate interest necessitates reprimanding him: he can only place cookies on the basis of legitimate interest to the extent that the cookie falls within the exception scenario provided for in Article 10/2, second paragraph of the LTD; as he has not done so in the past, this constitutes a violation of the aforementioned provision. The same applies, mutatis mutandis, to subsequent processing of personal data, which must be based either on Article 6.1.a. or on Article 6.1.f of the GDPR - and not on both provisions simultaneously or as an interchangeable "fallback solution."

165. It is therefore not relevant whether lawful consent was obtained from the complainant in question; the mere fact that the defendant potentially does not seek consent for the placement of such cookies and that this subsequently leads to unlawful processing of personal data is sufficient to establish the violation.

166. The fact that the decision to place such cookies is partly in the hands of third parties (regardless of whether they would be jointly responsible for the processing, data controllers, or processors in this processing process) does not change this. Indeed, under Article 5.2 of the GDPR, it is the defendant's responsibility to ensure that the placement of cookies and the processing of personal data following the placement of cookies via his disputed websites are carried out lawfully.

167. The elements of the complaint relating to transparency and information obligations, as well as the elements concerning (the facilitation and exercise of) the right to object following the placement of cookies based on legitimate interest, are not analyzed further in this decision. The Litigation Chamber does not have sufficient evidence to assess these alleged violations.

168. The Litigation Chamber finds that the grievances raised in the complaint – as rightly cited by the defendant – are too broad, such that the defendant has not been able to defend himself properly based on the documents of the administrative file submitted in the complaint or during the proceedings (for example, regarding the general reference to an alleged violation of the "principles of transparency, legality, and fairness").

169. The Litigation Chamber finds that the defendant has violated Article 10/2 of the LTD and Article 6.1.a) of the GDPR, as the defendant acknowledges having placed cookies based on legitimate interest while they did not fall under the exception provision of Article 10/2 of the LTD, before adapting his website in this regard. Furthermore, legitimate interest (also under Article 6.1.f) of the GDPR for subsequent processing) has been used as a 'fallback' solution when there was no consent (under Article 6.1.a) of the GDPR) for the placement of cookies.

170. The defendant should not have (placed) these cookies and, at the very least, did not examine whether the cookies could be placed based on legitimate interest - while this falls under his responsibility as a data controller in light of the legality of his personal data processing. For this reason, the Litigation Chamber will reprimand the defendant on this point.

171. The Litigation Chamber partially dismisses the complaint regarding the grievances related to transparency and information obligations (more specifically, Articles 12.2 and 5.1.a) of the GDPR are cited by the complainant in this regard), as well as (the exercise of) the right to object (Article 21.4 GDPR is cited by the complainant), for the reasons mentioned above.

III. Measures and execution by provision

III.1. Injunctions

172. The Litigation Chamber finds it appropriate to impose two distinct injunctions for each of the four disputed websites of the defendant due to the two aforementioned violations.

173. Injunction 1: the Litigation Chamber orders the addition of an opt-out option in each layer of the cookie banner of each of the four disputed websites, when in that same layer, the total acceptance option ("Accept and close") is provided, to the extent that the total acceptance option serves to give consent within the meaning of Article 10/2 of the LTD and Article 6.1.a) of the GDPR for the placement of cookies that involve the processing of personal data.

174. Injunction 2: when placing buttons in the cookie layers in the context of obtaining consent for the placement of cookies on the defendant's disputed websites, the buttons - and more specifically the colors and contrast of these buttons - must not have a misleading design. The "Reject all" option must be displayed equivalently to the "Accept all" option, as it is currently displayed on each of the four disputed websites. In principle, this does not exclude the defendant, as the data controller, from opting to display these buttons roughly in the same visible location, using the same color and size of button and text; it is the responsibility of the data controller to make these choices in this regard to fulfill his obligations, in accordance with Articles 5.2 and 24 of the GDPR.

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175. For each of the two injunctions, the defendant may draw inspiration from the suggestions and examples provided by the Data Protection Authority (APD) in its Cookie Checklist. However, it is the responsibility of the data controller to make its own technical and organizational choices in this regard. An illustrative image of the Checklist may be relevant for following the injunctions:

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Screenshot of the APD, Cookie Checklist, available at:

<https://www.autoriteprotectiondonnees.be/publications/checklist-cookies.pdf>, 1; the Cookie Checklist has been attached as an annex to the settlement proposal and is therefore included in this administrative file.

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176. Each of the two injunctions must be executed for each of the four disputed websites no later than the 45th day following the notification of this decision.⁶² In the context of implementing the order, the defendant will send a summary document to the Contentious Chamber and the complainant within the same timeframe; this document will indicate how the adaptations have been made on each of the disputed websites in order to implement the two injunctions.

177. If, starting from the 45th day following the decision, the Contentious Chamber finds that the injunctions have not been (or do not appear to have been) fully executed, it will send a notification to the defendant regarding this matter. Upon receipt of this notification by the defendant, the penalty (infra) will remain in effect until further notifications from the Contentious Chamber until each injunction for each of the disputed websites is complied with. In the event of partial execution of one or both injunctions for one or more disputed websites, the Contentious Chamber will inform the defendant of which injunction and for which disputed website(s) it considers the execution of the injunction(s) to be sufficient.

III.2. Reprimands

178. The Contentious Chamber reprimands the defendant regarding the possibility, in the "old" situation on the disputed websites, of withdrawing consent for the placement of cookies (thus including the processing of personal data resulting from the placement of cookies), which constitutes a violation of Article 7.3 of the GDPR.

179. The Contentious Chamber reprimands the defendant and asserts that it cannot place cookies based on legitimate interest only when and to the extent that they fall under the exceptional situations provided for in Article 10/2 in fine of the LTD, and in this sense, may also fall, for the processing of personal data resulting from it, under the legal basis set out in Article 6.1.f) of the GDPR.

III.3. Penalty: special considerations

III.3.1. Mitigating circumstances and impact on the nature of the corrective measure (penalty)

180. The Contentious Chamber takes into account the following argument from the defendant in this context:

"9th argument (in the alternative): No corrective measure can be taken against Mediahuis." In this regard, the defendant indicates that the only corrective measures – if the

62 In principle, the first of these 45 days begins the day following the receipt by the defendant of the registered delivery of this decision or the day following the expiration of the withdrawal period of the registered delivery.

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The Contentious Chamber must conclude that there has been a violation – which may result in the formulation of a warning or reprimand.

- a. Firstly, the defendant indicates that he has already taken various measures to make his cookie banners more compliant with the recommendations of the Data Protection Authority (DPA).
- b. Secondly, the defendant claims that the applicable legal requirements are too general in light of the practices raised by the complainant and the Contentious Chamber. In this regard, the defendant emphasizes that the proposed rules are general and open standards, allowing the data controller to make certain choices regarding colors, buttons, text used, etc.
- c. Thirdly, the defendant asserts that the interpretation of the rules regarding cookies is constantly changing and that there is no consensus on this interpretation.
- d. Fourthly, the defendant responds to the complainant's conclusions regarding this point.

181. The complainant has also made several "requests and suggestions" regarding the sanction or the imposition of measures; however, it is up to the Authority to choose⁶³ to exercise certain powers, and the complainant does not further elaborate on these arguments.

182. The Contentious Chamber has carefully examined the extent to which it can exercise its corrective powers, following the violations committed and repeated by the defendant thus far. In particular, the Contentious Chamber has taken into account the case law of the Court of Justice, which states that there must be intent or negligence in the commission of a violation for an administrative fine to be imposed.⁶⁴

183. Although the Contentious Chamber can today clearly assess the legal situation in light of the recent case law of the Court of Justice and the unanimous position of (the majority of) supervisory authorities on the addressed aspects, the Contentious Chamber believes that the defendant rightly refers to previous decisions of the Contentious Chamber in this regard. In this sense, it is far from sufficiently established that there would be no intent and negligence in the context of the problematic presentation of free consent (cf. the legal discussion regarding the "Reject All" option in the presence of an "Accept All" button). Therefore, the Contentious Chamber does not impose an administrative fine.

184. Nevertheless, the Contentious Chamber also takes note of the defendant's opposition to adapting his cookie banner so that consent is given freely and unequivocally and can therefore be obtained lawfully in light of the most accurate legal assessment. This notably requires the addition of a "Reject All" button or another presentation of an equivalent effect when a "Accept All" button is displayed on this cookie banner in the same layer, and this in a fair manner in accordance with Article 5.1.a) of the GDPR.

185. The Contentious Chamber therefore deems it necessary to take the necessary coercive measures so that the defendant complies with the assessment and subsequent injunction of the Contentious Chamber to bring the processing into compliance with the applicable legislation. It does so by imposing a penalty payment.

186. In the context of this decision, the Contentious Chamber has carefully examined the procedure for imposing a penalty payment. In this regard, it has taken into account the specific circumstances of the case and the need to ensure effective enforcement of the rules. The Contentious Chamber has decided in this case to deviate from the usual procedure as defined in the penalty payment policy, in favor of a more direct and effective approach.

187. This decision is based on the consideration that the nature of the violation and the corrective measures required necessitate rapid implementation. By including the penalty payment directly in the decision, without prior notification through a separate form, the Contentious Chamber aims to encourage the defendant to take immediate action.

188. The Contentious Chamber emphasizes that this approach does not limit the rights of the defendant. The defendant retains the possibility to contest the imposed penalty payment in the context of a potential appeal against this decision.

III.3.2. The penalty payment and the powers granted to the supervisory authority by European and national legislators

189. The penalty payment is a particular measure in that the amount to be paid is not certain and definitive at the time this decision is made. Indeed, the defendant first has a period to organize himself to remedy the situation or to file an appeal if he does not agree with the decision of the Contentious Chamber.

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190. In this sense, the penalty differs from the administrative fine: the former instrument aims to bring the factual situation into compliance with the applicable legislation, while the latter has a punitive character. The penalty thus differs from the fine both in its nature and its objective.

191. In a ruling dated February 19, 2020, the Market Court considered the following:

"Before a sanction is imposed, the offender must be informed of the nature of the sanction being contemplated and its significance (if a fine is being considered). The offender must be warned (in order to avoid unnecessary sanction) and must have the opportunity to defend themselves regarding the amounts of the fine proposed by the Contentious Chamber, before the sanction is actually imposed and executed."

192. In light of its "policy on penalties," the Contentious Chamber has determined that within the framework of an adversarial procedure and in light of the aforementioned consideration of the Market Court, the use of the penalty form would be required in the event of imposing a penalty.

193. However, the Contentious Chamber now believes that the imposition of a penalty should not be submitted to the defendant prior to its imposition for the following reasons:

a) The obligation for the Contentious Chamber to submit the sanction to the defendant before making a decision is based on the case law of the Market Court. In this regard, this step has been added, in addition to the legal framework, in light of the rights of the defense. In accordance with this case law, the Contentious Chamber uses what is called a "sanction form" which is submitted to the defending party prior to the actual decision in the case of an administrative fine.

This procedural step inherently involves a delay and an additional procedural burden; the Contentious Chamber acknowledges the importance of this procedure due to the sanctioning powers it may exercise, but it also notes that these purely national elements may hinder the uniform application of a European regulation.

65 Cf. Baeck J., Criel S. and Wagner K., *Seizure and Enforcement Law*, Brussels, Larcier, 2019, 5, Ch. 2, section 1 "indirect enforcement measure."

66 This deserves to be somewhat nuanced in that it aims for a "deterrent" effect, in accordance with Article 83.1 of the GDPR.

67 Ruling of the Brussels Court of Appeal (Chamber 19 A, Market Court) dated February 19, 2020, 2019/AR/1600.

68 Contentious Chamber, Policy on Penalties, December 23, 2020, available at:

<https://www.autoriteprotectiondonnees.be/publications/politique-en-matiere-d-astreinte.pdf>, 3.

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Such a measure, which delays and burdens the procedure, must therefore in any case be interpreted restrictively, in the sense that it should not interfere with the objectives of the legislator regarding the powers conferred to the authority.

b) As already indicated, the nature of the penalty is fundamentally different from that of an administrative fine as a sanction in its purest form. The penalty aims - as the term in French suggests - to "compel" a party to do something in order to render a factual situation legally compliant with the decision of the Contentious Chamber.⁶⁹

The reference doctrine clearly states that a penalty is not a criminal sanction⁷⁰, but rather an indirect

means of enforcement⁷¹. Its purpose is the execution of the injunction that the Contentious Chamber imposes on the party.⁷² In this sense, the choice of this coercive measure falls exclusively within the competencies of the Contentious Chamber, and a party does not need to express itself regarding its implementation prior to the decision. The fact that the penalty does not have a fixed amount and is conditional, in the sense that it only manifests after a party's inaction, does not change this. The national legislator deemed it appropriate to confer competence to the Contentious Chamber for a situation such as the one at hand, and the will of the legislator must therefore be recognized and respected.

194. The decisions of the Contentious Chamber do not have precedential value.⁷³ *A maiore ad minus*, the strategic documents of the Contentious Chamber are not binding. The Contentious Chamber acknowledges that such documents inspire public confidence, but it emphasizes that it wishes to communicate transparently and proactively with the public, while being subject to the legal developments it is seized with.

195. The fact that the penalty was not mentioned during the procedure is of no importance and is not required by law: the Court of Justice has repeatedly confirmed that the authority of

69 Wagner K., *Penalty*, Brussels, Story-Scientia, 2003, § 7: "It [the penalty], as an incentive for execution, is never intended to be effectively lost." When the Contentious Chamber refers to the doctrine and case law regarding civil penalties, it should be noted that this is for legal framing purposes. The instrument provided by the LCA is an administrative law power and is therefore different.

70 Wagner K., *Dwangsom*, Brussels, Story-Scientia, 2003, § 20.

71 *Ibid.*, § 5.

72 Cf. *mutatis mutandis*, Wagner K., *op. cit.*, § 6: "The purpose of the penalty is to ensure the direct execution of the obligations. (N.B.: free translation made by the translation service of the Data Protection Authority, in the absence of an official translation).

73 Brussels Court of Appeal (Chamber 19A, Market Court section): judgment of December 1, 2021 (2021/AR/1044), § 7.0.2.; judgment of July 7, 2021 (2021/AR/320), p. 12.

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The supervisory authority had a margin of discretion to determine the appropriate measures when handling a complaint under the GDPR.⁷⁴

III.3.3. Execution modalities of the penalty: accessory nature

196. It is not necessary for the penalty to follow immediately after the decision of the Contentious Chamber in order to give the defendant time to take the necessary technical and organizational measures, also considering the unclear legal situation mentioned above.

197. The penalty serves as an accessory measure to the injunctions imposed by the Contentious Chamber. In this sense, the penalty has a conditional nature.⁷⁵

198. A period of 45 days to implement injunction 1 and injunction 2 is sufficient for compliance with them.

199. On the 46th day following the notification of the decision or thereafter (the day of notification is the day on which the party receives the registered mail or the day following the expiration of the withdrawal period for the registered mail), the Contentious Chamber will inform the defendant by means of a notification that the latter 1) sufficiently complies with an injunction, 2) partially complies with an injunction, 3) does not comply with an injunction. The Contentious Chamber will initiate the penalty, if applicable, on the 46th day or thereafter by means of the notification of non-compliance under the aforementioned situations two or three.⁷⁶

200. A penalty of 25,000 EUR is appropriate for injunction 1 for each day commenced after the expiration of the 45-day period, also considering that the defendant party may contemplate non-compliance with the injunction due to its commercial impact. The penalty applies per disputed website of the defendant and can therefore amount to 100,000 euros per day for the defendant.

201. A penalty of 25,000 EUR is appropriate for injunction 2 for each day commenced after the expiration of the 45-day period, also considering that the defendant party may contemplate non-compliance with the injunction due to its commercial impact.

74 Judgment of the Court of Justice of July 16, 2020, Data Protection Commissioner v. Facebook Ireland Ltd and Maximilian Schrems ("Schrems II"), C-311/18, § 111.

75 Cf. Baeck J., Criel S. and Wagner K., *Seizure and Enforcement Law*, Brussels, Larcier, 2019, 5, Ch. 2, section 2 "Conditionality".

76 The Council of State can only impose a penalty after the party has failed to comply with a prior ruling; although the Contentious Chamber is not subject to such a legal limitation, it seems reasonable to also provide a compliance period for this purpose, so that the defendant can comply.

See art. 36 of the laws on the Council of State, coordinated on January 12, 1973; Royal Decree of April 2, 1991 determining the procedure before the administrative litigation section of the Council of State regarding injunctions and penalties.

See also Van Eeckhoutte D., "The penalty and the injunction in administrative litigation in Belgium", *Public Administration: Review of Public Law and Administrative Sciences*, 2010, Ed. 33, (426)429.

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The penalty applies per disputed website of the defendant and can therefore amount to 100,000 euros per day for the defendant.

202. The penalty applies per disputed website of the defendant and can therefore reach up to 200,000 euros per day for the defendant. This amount is considered proportionate given the scale of the defendant's activities and the potential impact of the violations on the rights and freedoms of the affected individuals.

203. The Contentious Chamber emphasizes that this amount is not intended to be a sanction, but an effective means to ensure compliance with the injunctions. The goal is to encourage the defendant to comply quickly and fully with the imposed measures, taking into account the financial capacity⁷⁷ of the company and the potential benefits that could result from non-compliance.

204. If the defendant can demonstrate that full compliance within the given timeframe is impossible despite all reasonable efforts, they have the option to submit a motivated request for an extension to the Contentious Chamber before the expiration of the deadline.

205. The penalty is accrued daily, with a maximum total amount for the penalties accrued of 10,000,000 (ten million) euros.

III.3.4. Visualization of the timeline for monitoring the injunctions and the accrued penalty

206. For purely illustrative purposes for the better understanding of the parties and any other reader of this decision, the timeline is indicated here regarding the execution of the decision. In any case, in the event of ambiguity between this visual representation and the text of this decision, the text of the decision prevails:

77 Cf. the annual accounts of the defendant filed with the National Bank of Belgium, available via: <https://consult.cbso.nbb.be/consult-enterprise/0439849666>.

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III.4. Execution by Provision

207. In the context of execution by provision, the Contentious Chamber particularly considers the request and the arguments of the defendant in this matter:

"10th plea (in the alternative): No execution by provision." The defendant invokes "particular reasons" in this regard and refers to the case law of the Court of Markets, according to which an effective remedy is only possible "when the applicant is not under pressure to pay an immediate fine and/or to comply immediately with the provisions of the contested decision." (Translator's note: free translation made by the Translation Service of the Data Protection Authority, in the absence of an official translation).

208. The defendant therefore formulates – referring to the case law of the Court of Markets – the legitimate request to suspend the execution by provision in this case, as it puts pressure on the parties in the context (of the outcome) of a potential appeal procedure.

209. The Contentious Chamber rejects the request to suspend the execution by provision for the following reasons.

210. First, execution by provision is the standard situation for the national legislator. The European legislator has granted the supervisory authority the competence to take measures: it is therefore the authority that decides which (corrective) measure is most appropriate to – if necessary – encourage the defendant party to respond or to impose this measure on them.⁷⁸

211. The fact that an appeal is possible before a judicial body after any decision in this matter does not affect the powers of the authority. In light of the separation of powers, the judiciary must assess a posteriori whether the supervisory authority has acted within the legal framework and within the scope of its discretionary powers. When the judge exercises their own power to suspend execution, it is a decision falling within their evaluative competence.

212. In view of the credibility of the powers that the European and national legislators have entrusted to the authority, the standard situation cannot be the suspension of the execution of decisions and measures taken by an authority as soon as a party requests it. Indeed, if this were the standard situation, it would undermine the entire intention of the legislator to act vigorously and effectively in a digital society. This does not correspond to the teleological conception of the powers granted to the authority under the GDPR.

78 Judgment of the CJEU of December 7, 2023, *UF and AB v. Land Hessen (Schufa)*, joined cases C-26/22 and C-64/22, ECLI:EU:C:2023:958, specifically § 68; This is, of course, the initial judgment concerning such measures, and not the question of full jurisdiction in the event of an appeal.

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213. In this regard, it is indeed the intention of both the European legislator and the Belgian legislator that a party against whom the Contentious Chamber takes measures complies without undue delay with the decisions of the authority. Once again, the Contentious Chamber emphasizes that this does not mean that suspension is not possible, but only if there are serious grounds for doing so (including, in an extreme case, the irreversible financial difficulties of a company when imposing an administrative fine).

214. Secondly, when provisional execution is not suspended and the decision subsequently proves to be deficient, legal redress is in any case possible, given that the rulings of the Market Court constitute the final judgment on the merits in the matters concerned. In this case, absolutely nothing indicates that such legal redress would be difficult or impossible, given that no irreversible measures are taken against the defendant. It might have been different if a (high) administrative fine had been imposed, a case to which the defendant also refers in light of its request.

215. If heavy measures are imposed on a defendant, for example in a situation where the law is clearly not manifest⁷⁹, the suspension of execution could well be considered, which is why the legislator has provided for this optional option.

216. In light of the present case, the Contentious Chamber has indeed found that there was previously a legal ambiguity regarding the interpretation of certain consent requirements related to cookies—particularly due to ambiguity regarding the interaction between the GDPR and the ePrivacy Directive; however, this ambiguity has since been clarified by the Court of Justice⁸⁰. The DPA has taken a position, as an institution, on the correct implementation of consent in light of cookie banners.

217. Furthermore, the fact that five similar media companies have accepted a transaction that reflects the position of the DPA as it emerges from the Cookie Checklist⁸¹ clearly indicates that the legal situation cannot be manifestly unclear. It can also be emphasized that courts commonly cite the position of supervisory authorities on cookies and other tracking devices and therefore consider them authoritative, without this meaning anything in terms of applicability as a standard.⁸²

79 Given that the Contentious Chamber cannot submit a preliminary question to the competent judicial authorities.

80 See among others the judgment of the CJEU of October 27, 2022, *Proximus v. DPA*, C-129/21, ECLI:EU:C:2022:833, response to the first preliminary question of the Market Court; see the legislative amendment regarding the DPA's powers to intervene regarding cookies.

81 Decisions of the Contentious Chamber of December 1, 2023 (159/2023, 160/2023, 161/2023, and 162/2023) and December 5, 2023 (164/2023).

82 By way of illustration: Amsterdam District Court, interim judgment, June 7, 2024,

ECLI:NL:RBAMS:2024:3331, available at:

<https://uitspraken.rechtspraak.nl/details?id=ECLI:NL:RBAMS:2024:3331>, § 5.7.

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IV. Publication of the Decision

218. Given the importance of transparency regarding the decision-making process of the Contentious Chamber, this decision is published on the website of the Data Protection Authority.

219. Given that the defendant is a media company of considerable size and societal reach, and that the processing of personal data concerns a significant portion of the Belgian population and—more broadly—the Dutch-speaking population, the Contentious Chamber considers it appropriate to disclose the identity of the defendant as well as the names of the disputed websites. This is in line with the transparency practice adopted by the Contentious Chamber in similar procedures involving similar actors in the media sectors that have led to transaction decisions, although these procedures did not result in findings of actual violations or the imposition of enforcement measures.

220. The identity of the complainant's representative is also important for the proper understanding of the procedure, given the procedural elements raised by the defendant concerning the practice of mandating this representative. In this regard, it can be noted that the representative himself disclosed the circumstances of this procedure—including the identity of the defendant—on his website.

Furthermore, it is important to transparently indicate the fundamental differences in the evaluation of the procedure in this case compared to other cases—where the Contentious Chamber indeed concluded that there was a failure in the mandate given to the same representative.

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Such an appeal may be introduced by means of a contradictory application which must include the details listed in Article 1034ter of the Judicial Code⁸³. The contradictory application must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code⁸⁴, or via the e-Deposit computer system of the Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS

President of the Litigation Chamber

83 "The application must contain, under penalty of nullity:

1° the indication of the day, month, and year;

2° the name, first name, and address of the applicant, as well as, where applicable, their capacity and national registry number or business number;

3° the name, first name, address, and, where applicable, the capacity of the person to be summoned;

4° the subject and a brief summary of the grounds of the application;

5° the indication of the judge who is seized of the application;

6° the signature of the applicant or their lawyer."

84 "The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed with the registry."